

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER 5000220610	PAGE 1 OF 124
2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER 2043FY-26-R-00007	6. SOLICITATION ISSUE DATE 4/26/2026	
7. FOR SOLICITATION INFORMATION CALL: 			a. NAME Patricia Brown	b. TELEPHONE NUMBER (No collect calls)	8. OFFER DUE DATE/LOCAL TIME
9. ISSUED BY Office of Procurement Operations-Office of Procurement Operations 1285 Carmichael Way Montgomery, AL 36106-3672 Attn: Ladoris Tuck Tel: Email: ladoris.r.tuck@irs.gov			CODE 2050	10. THIS ACQUISITION IS ☒ UNRESTRICTED OR SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: 513210 ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ EDW ☐ 8 (A) SIZE STANDARD: 34M	
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED OFFER UNDER DPAS (48 CFR 700) ☐	
15. DELIVER TO See Attached Delivery Schedule		CODE		16. ADMINISTERED BY CODE	
17a. CONTRACTOR/OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE	
TELEPHONE NO.					
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND POST WITH ADDRESS IN OFFER SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM					
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
	Requirement: Electronic Tax Return Transmission Software Supply				
	A Resulting award is expected to include a Schedule based on the completed Section 1 of the Schedule.				
	(Use Reverse and Attach Additional Sheets as Necessary)				
25. ACCOUNT AND APPROPRIATION DATA See Attached Schedule(s)			26. TOTAL AWARD AMOUNT (For Govt. Use Only)		
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED					
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED

SECTION I-CONTRACT REQUIREMENTS

1. CONTRACT TYPE AND CEILING

The purpose of this Statement of Work (SOW) is to establish a single-award contract for the procurement of commercial off-the-shelf (COTS) tax preparation software and associated support services. Firm-Fixed-Price (FFP) Contract Line-Item Numbers (CLINs) will be used for the acquisition of software licenses and related services, as required by volunteer sites.

This acquisition will be conducted in accordance with Federal Acquisition Regulation (FAR) Part 15, Contracting by Negotiation.

This contract does not obligate any funds at the time of award. Funds will be obligated through the issuance of orders or modifications in accordance with applicable funding procedures. The Government does not guarantee that the total quantity of supplies or services ordered will equal the maximum contract ceiling.

The contractor is guaranteed a minimum order of 8,500 software licenses during the base period and, if exercised, during each of the four (4) option periods.

The maximum contract ceiling amount the Government may award under this contract is (To Be Completed at Time of Award).

2. PERIOD OF PERFORMANCE

The base ordering period is a 12-month base period, with four (4) consecutive 12-month option ordering periods as stated below:

- Base Period: August 17, 2026 – August 16, 2027
- Option Period 1: August 17, 2027 – August 16, 2028
- Option Period 2: August 17, 2028 – August 16, 2029
- Option Period 3: August 17, 2029 – August 16, 2030
- Option Period 4: August 17, 2030 – August 16, 2031

Transition-in activities are required for the first (90) days of contract performance. During the initial contract period, transition activities such as knowledge transfer, system setup, data migration, help desk stand-up, training material development, live web-based training sessions, and system testing and acceptance will be started in August 2026.

In each year, training material development and live web-based training will be started in August and be completed before January each year.

Software shall operate at its full capacity by the beginning of the 2027 filing season (Tax Year 2026).

Software licenses are valid one year of each contract period.

3. PLACE OF PERFORMANCE

The place of performance will primarily be the Contractor's site. Task orders may be issued for performance to be at VITA sites, TCE site, Internal Revenue Service (IRS) facilities, or Treasury facilities. The specific place of performance shall be identified in the award.

4. ORDERING PROCEDURES

A Firm-Fixed-Price (FFP) single-award contract will be awarded to the Contractor based on the pricing submitted for each deliverable under the applicable Contract Line Item Numbers (CLINs). The Contractor shall provide software licenses and associated support services in accordance with the requirements set forth in this contract.

Performance shall be authorized through the contract award and any subsequent contract modifications, as applicable. Work shall be performed under direction of the Contracting Officer, based on requirements identified by the Contracting Officer's Representative (COR) or Program Office and supported by a valid, fully funded requisition.

5. SHIP TO LOCATIONS

Unless otherwise specified, all deliverables/work products shall be provided to the IRS COR and shipping to approximately 1200 domestic and 70 international shipping addresses which could include multiple deployments.

6. DELIVERABLES

Unless otherwise requested in writing by the COR, work products shall be produced using Microsoft Office 2010 or later Professional products and delivered in accordance with the deliverable schedule under Attachment 2. If it is required that deliverable(s) be submitted in electronic storage format, all devices must be scanned and certified as virus free.

7. RAMP-UP PERIOD

Work under this statement of work may require a ramp-up period at the initial start of this contract. During the Ramp-up Period the Contractor will recruit and hire personnel specifically for this contract.

Note: Refer to 4.6 TASK 6 in the SOW: RAMP-UP KNOWLEDGE TRANSFER-IN.

ORDER ADMINISTRATIVE DATA

8.1 Identification of Government Task Order Personnel

The CO's designation will be identified by the CO's written designation memo. Similarly, the Alternate COR (ACOR) will be identified by the CO's written designation memo. The CO will identify the (COR/ACOR) via e-mail to the Contractor

8.2 Performance Required Beyond Standard Workday

If needed, performance may be required beyond the standard workday. Beginning with the delivery of software through April, help desk support shall be available as follows: Mon - Fri: 8 AM ET - 12 AM ET and Sat and Sun: 8 AM ET - 8 PM ET. Post filing season, normal help desk hours are required Mon-Fri: 8 AM ET – 5 PM ET. In the case of a problem the expectation is that the Contractor will have someone working on it until it is resolved or a work around is established.

8.3 Personnel Removal and Replacement

The applicable contractor employees are subject to investigation by the government. Applicable contractor employees who undergo contractor clearance that reveals but are not limited to, the following may be unacceptable under the contract: conviction of a felony, a crime of violence or a serious misdemeanor, record of arrests for continuing offenses, or failure to file or pay federal income taxes. The government reserves the right to determine if a contractor employee assigned to a task shall continue with the task. The contractor shall agree to remove the person assigned within one day of official notification by the government and provide a replacement within five days. New hires or substitutions of personnel are subject to the contractor clearance requirement.

8.4 Deliverables/ Work Products

All contractor deliverables or work products shall remain categorized as "Official Use Only." The release of any portion must be authorized in writing by the government.

The contractor shall adhere to Section 508 of the Rehabilitation Act of 1973, which requires access to the Federal Government's electronic and information technology. The law applies to all Federal agencies when they develop, procure, maintain, or use electronic and information technology. Federal agencies must ensure that this technology is accessible to employees and members of the public with disabilities. <http://www.section508.gov/>

Each Electronic and information technology product or service furnished under this statement of work shall comply with the Electronic and Information Technology (EIT) Accessibility Standards (29 U.S.C. 87794(d)).

For every EIT product or service accepted under this contract by the Government that does not comply with 29 U.S.C. 87794(d)), the contractor shall at the discretion of the Government, make every effort to replace or upgrade it with a compliant equivalent product or service, commercially available and cost neutral, on either the planned refresh cycle of the product or service, or on the order renewal date, whichever shall occur first.

The contractor will be working with sensitive taxpayer data under this contract and must demonstrate the ability to pass all IRS security reviews required to receive access to encrypted sensitive taxpayer data.

SECTION II-STATEMENT OF WORK (SOW)

1. Background:

The Stakeholder Partnerships, Education and Communication (SPEC) organization within Customer Assistance, Relationships and Education (CARE), provides free electronic tax preparation for taxpayers who are generally low-income, elderly, disabled or have limited English proficiency. This service is provided nationwide in approximately 10,000 volunteer sites. Most of the return preparation is performed by certified volunteers.

Over each of the last three years, approximately 3.6 million Federal returns and 2.7 million state returns were processed at these sites by over 96,000 volunteers, partners and employees. Generally, sites operate from January (beginning of e-file) through April 15. Some sites remain open year around.

1.1 Volunteer Income Tax Assistance (VITA):

SPEC partners with Community Based Coalitions, Non-profit organizations, and local City and State Governmental Agencies to provide free tax preparation services. These agencies support the Volunteer Income Tax Assistance (VITA) program. VITA partners and volunteers prepare basic tax returns for low-income taxpayers who are U.S. citizens, residents and non-resident aliens. All tax preparation is performed by a certified volunteer with the taxpayer present or by a taxpayer with the assistance of a certified volunteer. The services generally include income from wages.

VITA sites are located at neighborhood community centers, libraries, churches, shopping malls and other locations that are convenient to the taxpayer, including a supplemental program for taxpayers living abroad or near U.S. embassies overseas. Internet accessibility is to be determined by location.

SPEC also partners with the Armed Forces Tax Council to provide free return preparation for active and retired military personnel at military bases and ships across the nation and internationally. These returns can be more complex and include a wide- variety of forms and schedules. These sites have internet access but operate in a secure environment which tends to limit the communication speed.

1.2 Tax Counseling for the Elderly (TCE):

Tax Counseling for the Elderly (TCE) offers tax assistance services similar to those provided by VITA, as well as financial tax counseling for elderly taxpayers, who are restricted to retirement homes, neighborhood centers, or private care homes. These returns are generally more complex than those prepared through VITA and may include income from pensions, annuities, and social security benefits.

2. Objectives:

The objectives of this single award contract are the following:

- provide secure, commercial off the shelf (COTS) Tax Preparation Software supporting VITA/TCE operations

- enable accurate preparation and transmission of federal and state taxes returns
- provide reliable user support and training to ensure successful filing season operations
- deliver timely and accurate reporting to support IRS program oversight

3. Scope:

The Contractor shall provide COTS tax preparation software, support services, training, reporting, and system capabilities necessary to support IRS VITA and TCE program across approximately 12,000 sites globally.

4. Task:

CARE's requirements include contractor support and facilitation of the following tasks:

Task 1 - Orientation Briefing

Task 2 - Software Production Environment: Software

Task 3 - Reporting Capabilities: User Generated, Recurring, Contractor Generated Management Reporting and Ad Hoc Contractor Generated Reporting

Task 4 - Help desk assistance and technical problem resolution support

Task 5 - Regulatory, Security and Privacy needs

Task 6 - Ramp-Up Knowledge Transfer-IRS

Task 7 - Ramp-Up Knowledge Transfer-Contractor

Task 8 - Period of Performance Summary Report

Task 9 - Transition to Support

Task 10 - Site File Upload and Tax Software

Task 11 - Direct Client Contact

4.1. Task 1: Orientation Briefing

Within two (2) weeks of award, the Contractor shall conduct an orientation briefing for the Government. The Government does not conduct an elaborate orientation briefing, nor does it expect the contractor to expend significant resources in preparation for this briefing. Rather, the intent of the briefing is to initiate the communication process between the Government and Contractor by introducing participants, explaining their roles, reviewing communication ground rules, and ensuring a common understanding of the requirements and objectives.

The orientation briefing shall be held at an IRS facility or via a conference call. Both parties shall mutually agree upon which method, the date and time. The completion of this briefing shall result in the following:

A. Any contractor and Government personnel who will perform work under this contract shall be introduced.

B. Any issues concerning the contractor clearances for contractor personnel will be discussed.

C. The contractor shall demonstrate confirmation of their understanding of the work to be accomplished under this statement of work.

4.2 Task 2: Software Production Environment: Software

A. Core Functionality

- Prepare federal, state, local returns
- Support all required forms
- Allow web + desktop operation +Facilitated Self Assisted (FSA) self-preparation
- Utilize a taxpayer portal that allows taxpayers to upload income documents and complete an intake sheet remotely or on site
- Include VITA TCE intake sheet Form 13614C electronically
- Allow the capability to compare the intake sheet and source documents to the final prepared return and any inconsistencies reported in diagnostic results
- Include the ability to scan in income forms or direct upload of software from the taxpayer portal

B. User Management & Security

- Role-based access
- Authentication
- Audit tracking

C. Data Handling

- Secure storage
- Upload/download capabilities
- Data transfer between systems
- Data exchange as between taxpayer and sites via taxpayer portal

D. Filing & Transmission

- E-file capability
- Acknowledgement
- Error handling

4.2.1 Functional Requirements for All Software:

4.2.1.1 All software shall be capable of accurately preparing and filing any individual federal, state and local income tax returns for all possible tax situations prescribed by the IRS that may occur among those served by the VITA and TCE programs. At these sites, volunteers either prepare tax returns for taxpayers, or assist taxpayers with self-preparation. Not all volunteer sites

have internet access. The contractor must provide a method for the software to function as a Web-Based Version, Self-Preparer Web-Based Version, and a Desktop Version. (See Glossary)

The software shall be capable of electronic return preparation for the following 1040 Series Family Forms, including but not limited to 1040, 1040SR, 1040NR, 1040NREZ, 1040RR and 1040X. All tax software companies must have passed IRS Assurance Testing System (ATS) and have permission to transmit returns.

4.2.1.1.a

The Contractor shall provide/support/implement:

- The Contractor shall ensure the software functions as a web-based application for assisted tax preparation.
 - Capability of the Desktop Version to install software and prepare returns on computers without an internet connection.
 - The Contractor shall ensure the site managers have the capability to track the status of prepared return as it passes through IRS-defined stages: Preparing, Reviewing & e-file/transmitting.
 - The system shall ensure that only one authorized user can edit a tax return at a time.
 - Functionality which allows for capturing general preparer-user defined fields to capture information not found on the return, such as client demographic information or other user defined fields.
 - The system shall allow for a real-time electronic form checks (aka schema validation) and transmission on tax returns.
 - Functionality of all Versions to support the direct transmission of e-filed federal, applicable state, and local returns.
 - The system shall ensure it has the capability to securely download a taxpayer data file on fixed or removable media and import the data file back into the software.
 - The system shall enable a user or taxpayer remotely at one location to be able to securely upload taxpayer documents and fill out intake sheet 13614-C to a different user at a different location at the tax preparation site.
 - The system shall potentially allow for the interface/upload of an IRS digital form (i.e. Form 13614-C).
 - The Contractor shall ensure that only authorized users (see Attachment 5 - Glossary) can use the software within distinct permission levels in order to restrict certain users from performing functions described in Attachment 1 – Roles and Responsibilities.
- The system shall support transmission of returns for multiple EFINs at a site.
- Quality review to compare intake sheet and source documents with final return.
 - Security control features which require review of a completed tax return and the ability to print return, prior to submission.
 - The system shall ensure authorized users can determine who is working on a return during each stage of the filing process.
 - Ability to identify who performed a quality review tracked in the system
 - Need for remote quality reviews
 - Video chat function

- Ability to obtain taxpayer consent to review their return prior to submission.
- Ability to randomly select a return for review.
- Ability to upload documents that support the quality review process.
- Potentially adding a function to allow volunteers to share a document with the client and the client share with the preparer
- Ability to restrict certain functions so the taxpayer can't access a finalized document before signing their return.
- Method for volunteers completing taxes to include notes.
- Ability for software to calculate the allowable portion of the standard deduction when there's exempt income.
- Ability for the software to calculate the reduction in foreign taxes.
- The system shall ensure for the administrator or licensee to restrict a user to one Data entry (i.e., prepare vs. transmitter) mode.
- The system shall ensure EFIN/SIDNs of authorized licenses be associated with every return and preloaded into the default settings
- Process for which the Contractor can authenticate the ID of every transmission to the authorized licensee of the software
- Notification process and the time to acknowledge receipt, acceptance, and rejection of a return by the IRS.
- Functionality to provide timely notifications for acknowledgements, receipt, acceptance, and rejection of a return by the IRS.
- The system shall require volunteers to create passwords upon first login.
- The system shall allow a return that is started on a software package at a site to be completed by another volunteer using the same software package at the same site.
- The system shall print individual forms and/or a customizable package of forms for all printer types.
- The system shall have a VITA informational log platform so that performance and program related information can be shared.

4.2.2 Requirements for Self-Preparation Version:

Functionality of the Self-Preparer Version to return errors and acknowledgements to the taxpayer via electronic notification.

4.2.3 Preparation Capabilities

All software shall be capable of preparing and filing any individual federal, state and local income tax returns for all possible tax situations prescribed by the IRS that may occur among the scenarios reserved by the VITA and TCE programs. Refer to Publication 1345, Handbook for Authorized IRS e-file Providers of Individual Income Tax Returns and Publication 4012 Scope Chart. The Contractor shall provide/support/implement:

- Software shall have no limit as to the number of local, state, and federal tax returns that can be filed per licensed copy.
- Ability to send an email to taxpayers to upload their documents via a link or QR code and fill out the intake sheet within the taxpayer portal.
- Ability for preparer to drag drop income documents from taxpayer portal.

- Ability for software to compare the intake sheet, source documents and prepared return and give feedback in diagnostics about any irregularities found.
- The system shall scan/upload images of tax documents (i.e., W-2, 1099, supporting documents and form13614C etc.) at site A (intake site) or input by taxpayer into the software for temporary storage and transfer to site B (return preparation site). To increase VITA/TCE partner flexibility and facilitate the remote preparation of tax returns at offsite partner tax locations, the contractor shall provide the capability for volunteers and taxpayers to upload, view, and store files to the tax software. Documents can be uploaded to the contractor's secure servers using either a scanner and/or a mobile device. The uploaded files must be associated with a specific client tax account or return. Users will have the ability to label and delete files as needed. File storage will be unlimited, and uploaded files will not be automatically deleted until the tax software is taken down for revisions/upgrades for the following tax year (i.e., November or December).
- The system shall securely store data from the previous tax year returns and supporting the secure transfer of taxpayer information into the current tax year.
- Ability to meet IRS assurance testing system standards for filing electronic returns as well as the ability to prepare non-e-file returns.
- The system shall support interview-based data entry capabilities for federal, state, and local returns. (See Glossary)
- The system shall support form-based data entry capabilities for federal, state and local returns. (See Glossary)
- Data entry modes for different experience levels of preparation to assist with gathering information necessary to prepare a return, interview-based and forms-based preparation.
- The system shall transition between form-based and interview-based data entry modes in real-time, without losing any information already entered.
- Ability for the software to support state income tax return preparation capabilities for all states with an income tax filing requirement by the 1st day of the filing season.
- Ability to support multiple local municipal return preparation capabilities.
- Ability to support independent federal and state return preparation capabilities. (e.g. either return may be prepared without preparing the other.)
- Support refund payment methods including Electronic Funds transfer (EFT) (i.e. direct deposit, direct bill), paper check, split refunds and savings bond refunds. Provide diagnostic alert to view for returns with a refund without a direct deposit. Alert prepared that a notice may be sent to the taxpayer and delays may occur.
- Capability to enable any feature that offers the taxpayers a debit card.
- State return preparation capabilities for full and part year residents and non- residents.
- The system shall auto-populate information between Form 13614-C intake sheet, state and federal returns.
- The system shall access for user the self-service help features to understand how to navigate and complete a tax return and resolve errors. The help features must provide context sensitive help, including form-specific and field-specific help instructions.
- Ability to prepare Federal, state and local individual tax returns for the current tax year and previous five tax years.
- Ability to e-file federal individual tax returns for the current tax year and previous two tax years.

- Ability to prepare amended returns.
- A method to carry forward permissible data to the next year's tax return within each software version.

4.3 Task 3: Reporting Capabilities: User-Generated, Recurring Contractor Generated Management Reporting and AD HOC Contractor Generated Reporting

Each volunteer site is required to provide statistics on the taxpayers served by the site to its sponsoring organization. Therefore, the contractor shall provide, within the software, site level reporting capabilities. The respective software shall also provide the IRS POC, or their designee, with the ability to retrieve statistical data of taxpayers served for all IRS licenses. In addition to the standard reports the Contractor shall allow for custom reporting.

4.3.1 User Generated Reports

The contractor shall provide software that allows appropriately authorized users to create and run customized (also called "ad hoc") management reports, based on a selection of data fields included but not limited to 4.3.2 *Recurring Contractor Generated Management Reporting* section below. This ability can be provided from within the software and must be accessible through a separate reporting website. The online reporting website for all IRS licensees shall run the same reports available from the desktop software. Users will be able to generate reports with any available data. They should also be able to customize the reports by adding the features they require and exporting the file in a readable format such as Excel. Reports should be expanded such as FSA and remote reports. Ability to combine multiple year returns reports on the dates needed.

The contractor shall provide the following standard statistical reports on demand, for all platforms:

- Summary report on federal tax returns, categorized by various parameters including EFIN, return type, and date of preparation.
- Detailed report on federal tax returns prepared by EFIN and SIDN including Adjusted Gross Income (AGI) and general information for each taxpayer and detailed information about each return prepared.
- Summary and Detailed reports on federal tax returns by tax form type with schedules and should include all forms and schedules prepared.
- IRS e-Filing Acceptance and Rejects summary and detailed reports.
- Pending Acknowledgement summary and detailed reports – from either the IRS or states.
- Listing of all clients with summarized general information details for each client and categorized by EFIN and SIDN.
- Listing of all Employer Identification Numbers (EIN) used in each tax return (state or federal) and summary across all tax returns. That is, the EINs from the taxpayer's W-2, 1099.
- Reports cross-referencing details captured within the generic data fields per prepared tax return.
- Tax Preparer summary and detailed reports.
- Number of claims and total dollar amount for state claims of EIC, refunds, and

balance due.

- Summary reports on counts of self-prepared and volunteer prepared.
- Develop and maintain reporting capabilities for the VITA informational blog platform to track and report user engagement metrics for IRS-uploaded content, including views, downloads, and total file access counts.
- Reports showing relevant tax law elements while active, i.e., Trump accounts, senior credit, overtime and tax on tips. Data to include number of taxpayers using and dollars deducted on return.
- Reports of how many people do not select Direct Deposit and use a paper check including percentage of total returns prepared

4.3.2 Recurring Contractor Generated Management Reporting

The Contractor shall provide accurate, timely management reports containing the required information weekly and monthly. Prior to the beginning of the filing season, the IRS would like the capability to discuss additional/deletion of fields annually based on tax law changes. In addition to reports provided to the licenses within the software, the contractor shall provide the following reports to the IRS POC:

- Weekly management reports during January through April
- Monthly management reports May through October
- A summary report containing the following information before about the returns entered at each site and at all sites in accordance with the delivery schedule specified in the table of deliverables. The reports shall contain, but not be limited to the following data fields:

- 1040 Returns – Type of Return
- 1040SR Returns – Type of Return
- 1040X Returns – Type of Return
- Single Filing Status
- Married Filing Joint – Filing Status
- Married Filing Separately – Filing Status
- Head of Household – Filing Status
- Qualifying Widow(er) – Filing Status
- Earned Income Tax Credit – Number of taxpayers that claimed EITC
- Average EITC – Average dollar amount of EITC claimed
- Total EITC – Total dollar amount of EITC claimed
- Child Tax Credit/Credit for Other Dependents – Number of taxpayers that claimed CTC/Child tax credit/credit for other dependents
- Average Child Tax Credit/Child tax credit/credit for other dependents – Average dollar amount of CTC/Child tax credit/credit for other dependents claimed
- Total Child Tax Credit/Child tax credit/credit for other dependents – Total dollar amount of CTC/Child tax credit/credit for other dependents claimed
- Education Tax Credit – Number of taxpayers that claimed the Education Tax Credit
- Average Education Tax Credit – Average dollar amount of Education Tax Credit claimed
- Total Education Tax Credit – Total dollar amount of Education Tax Credit claimed
- Elderly Credit – Number of taxpayers that claimed the Elderly Tax Credit
- Average Elderly Credit – Average dollar amount of Elderly Tax Credit claimed
- Total Elderly Credit – Total dollar amount of Elderly Tax Credit claimed

- Total Marketplace – Total number of marketplace exemptions claimed
- Total_Exemptions_7A – Total number exemptions claimed
- Total IRS Exemptions – Total number of exemptions claimed
- Full Year Count – Total number of returns with full year coverage
- Resp Payment Count – Total number of returns with Shared Responsibility Payment (SRP)
- Total Resp Payment – Total dollar amount of SRP
- Average Payment – Average dollar amount of SRP
- Adv PTC Repayment Count – Total number of returns with Advance PTC Repayment
- Total Adv PTC Repayment – Total dollar amount of Advance PTC Repayment
- Average Adv PTC Repayment – Average dollar amount of Advance PTC Repayment
- PTC Count – Total number of returns with Premium Tax Credit
- Total PTC – Total dollar amount of Premium Tax Credit
- Average PTC – Average dollar amount of Premium Tax Credit
- Transmitted – Total number of returns that were transmitted
- Accepted – Total number of returns that were accepted
- Rejected – Total number of returns that were rejected
- First Transmission Date – Date the first transmission was sent to contractor
- Last Transmission Date – Date the last transmission was sent to contractor
- Requesting Direct Deposit – Total number of returns that requested Direct Deposit
- Average AGI – Average Adjusted Gross Income
- Total Refund Amt – Total refund amount for all transmitted returns
- Average Refund Amt – Average refund amount for all transmitted returns
- Total Balance Amt – Total balance due amount for all transmitted returns
- Total 703 Balance Returns
- Average Bal Due Amt – Average balance due amount for all transmitted returns
- Primary or Second – Number of primary taxpayers/spouses that were 60 years of age or older
- SIDN/PTIN – Taxpayer Identification Number
- FED_1
- SCHED_2
- SCHED_3
- SCHED_4 - If a schedule A is included in the return = A
- SCHED_5 - If a schedule B is included in the return = B
- SCHED_6 - If a schedule C is included in the return = C
- SCHED_7 - If a schedule D is included in the return = D
- SCHED_8 - If a schedule E is included in the return = E
- SCHED_9 - If a schedule F is included in the return = F
- SCHED_R - If a schedule R is included in the return = R
- SCHED_SETP - If a schedule SE is included in the return = SE-TP
- SCHED_SESP - If a schedule SE is included in the return = SE-SP
- SCHED_EIC - If a schedule EIC is included in the return = EIC
- SCHED_CEZ - If a schedule CEZ is included in the return = CEZ
- EFIN – Electronic Filing Identification Number
- USER_NAME – Username where the return is stored

- FIRST_NAME – Taxpayer’s first name
- LAST_NAME – Taxpayer’s last name
- FILING_STATUS – 1=Single; 2=Married filing Joint; 3=Married filing Separate; 4=Head of Household; 5=Qualifying Widow/Widower
- NUMBER_OF_DEPENDENTS – Number of dependents claimed on return
- AGI - Total dollar amount of AGI on return
- CHILD_CARE_CREDIT Total dollar amount of Child Care Credit claimed
- TAX - Total dollar amount of tax on return
- UNEMPLOYMENT - Total dollar amount of Unemployment Income reported
- REFUND - Total dollar amount of refund on return
- RETURN_TYPE – E = Electronic; P=Paper
- DIRECT_DEPOSIT – T=Yes; F=No and dollar amount
- MULTIPLE_REFUND_DEPOSIT – Total number of refunds deposited into a single bank account
- STATE_REFUND - Total dollar amount of State Refund on return
- STATE_REJECTED_DATE – Date return was rejected
- STATE_ACCEPTED_DATE – Date return was accepted
- STATE_TRANSMITTED – Total number of returns that were transmitted
- TAXPAYER_AGE – Primary taxpayer’s age at time of return
- DATE_OF_BIRTH – Date of birth of primary taxpayer
- CITY
- STATE
- ZIP
- FORM_8888 – T=Yes; F=No
- ITIN - Number of returns prepared
- Number of paper refund checks requested including **count**, **amount**, and percentage of returns filed
- Number of Trump Accounts set up including count and dollar amount
- Number of Tips declared including number of taxpayers and dollar amount
- Number of Lifetime Credit applied including number of taxpayer and dollar amount

4.3.2 Contractor Generated Reporting

The Contractor shall provide accurate, timely management reports containing the required information as needed for ad hoc requests. In addition to reports provided to the licensees within the software, the contractor shall provide management reports on an ad hoc basis to the IRS POC. The reports may contain the following information by the preparing EFIN:

- The total number of accepted federal and state returns filed electronically identified as transmitted, accepted and rejected.
- The total number of accepted returns by filing status, i.e. married filing jointly, single, etc. by type of form (1040, 1040S-R, etc.).
- Software package used, the SIDN, State EITC, State balance dues, State refund, the total number of accepted returns electronically filed claiming the earned income tax credit, child tax credit, education credit, and credit for the elderly, and the total amount of credits claimed.
- Each EFIN’s beginning and ending transmission date.

- Total number of accepted returns electronically filed requesting direct deposit of refunds.
- Average AGI of returns electronically filed.
- The total number of federal returns that have zero or one-dollar AGI.
- Number of accepted returns electronically filed where the primary or second filers were age 60 or over.
- The total number of accepted returns electronically filed claiming a refund and the total amount of refunds.
- The total number of zero balance returns.
- Total number of self-prepared and preparer prepared returns.
- The total number of accepted returns electronically filed claiming a balance due and the total amount of the balance due.
- The total number of returns filed that used an ITIN.

4.4 Task 4: Helpdesk Assistance and Technical Problem Resolution Support

The Contractor shall provide a support website, toll-free telephone number, email, and chat help desk support to licensees for all products. The help desk shall provide timely issue resolution to the licensees and detailed reporting to the IRS. Help desk support is defined as assistance that provides successful resolution of questions relating to software/hardware compatibility and functionality issues of the Contractor's software. This includes providing support for trouble-shooting technical issues related to the installation and operation of the software (hardware, printers, etc.).

Provided below are the minimum help desk requirements:

- Beginning with the delivery of software through April, help desk support shall be available as follows: Mon-Fri: 8 AM ET - 8 PM ET and Sat and Sun: 8 AM ET - 8 PM ET. During the filing season (see Glossary), normal help desk hours are required Mon-Fri: 8 AM ET - 8 PM ET. In all cases, the Contractor will have someone working on it until it is resolved or a work around is established.
- The POCs for support issues shall provide contact information including a phone number, email address, and contact information for after hours as necessary.
- The help desk support shall permit unlimited contact from POC and IRS licenses by phone, email, chat, etc.
- The help desk shall provide a first contact resolution rate of at least 95% regardless of the method of reporting the problem.
If resolution cannot be achieved during the initial contact, the Contractor shall provide a response within one hour with a status update. In no more than 4 hours the help desk shall present a plan for resolution. Problem resolution shall occur within 24 hours.
- All users shall receive first level help desk support with an on-hold time less than five minutes.
- During the filing season, all help desk contacts shall be logged and accounted for in detail. The contact log shall contain a tracking number and capture the following:
 - The type of IRS program, i.e. VITA, TCE, etc.,
 - licensee's EFIN,
 - the problem identified,

- the solution that was provided to the licensee,
- date of contact, time of day,
- date of solution,
- length of time to answer in minutes,
- length of call in minutes if applicable,
- number of incoming contacts,
- number of abandoned contacts,
- if contacts are categorized, the Contractor will provide a legend that defines the categories,
- Software type (web-based, desktop or self-preparer version).
- The Contractor shall provide, administer, and maintain a support website for licensee access including IRS licenses.
- The support website shall be available to IRS licensees twenty-four hours a day, seven days a week.
- All content on the support website (including Emails, Blogs, etc.) shall be text searchable and accessible for a period of three years.
- The Contractor's support website shall provide product information, frequently asked questions and answers (FAQ's), links to email support, and software updates.
- In the event of an unscheduled outage, the Contractor shall provide initial notification to the COR no later than (15) minutes after initial discovery, hourly updates, and a resolution of the problem via broadcast email to all licensed PO's.
- In order to increase efficiency of interactions between VITA/TCE partners and clients, the contractor shall provide a client portal that allows for secure two-way communication between sites and clients.

4.5 Task 5: Regulatory, Security, and Privacy Standards

Award of this contract will be contingent upon the contractor's facility, systems, and procedures, successfully passing the IRS Contractor Review, performed within 2 weeks after notice of intent to award. After the Contractor Review, the Contractor will submit a plan of compliance to mitigate the risk within 2 weeks from IRS notification of vulnerabilities or risks disclosed during the review. The Contractor is solely responsible for the costs of the respective mitigation plan. The contractor shall be fully compliant with the risk mitigation plan, including IR required changes to the risk mitigation plan. IRS will perform a follow-up safeguard review within 2 weeks after the 30-day deadline to validate contractor compliance. Because of heightened security awareness, the IRS may, from time to time, notify the contractor of increased risks, and request changed security procedures. The contractor shall negotiate with the IRS to determine the timing, scope, and resolution of the problems.

The contractor shall comply with all applicable security rules and regulations as specified in this Statement of Work. In addition, the contractor shall comply with the most current version of the publications listed on Attachment 3 – Applicable IRS Publications and IRS Internal Revenue Manuals (IRM).

4.6 Task 6: Ramp-Up Knowledge Transfer-In

Ramp-Up Knowledge Transfer-In is defined as the Contractor obtaining and understanding the necessary documentation, information, readiness activities, and processes related to any work that is used for the VITA and TCE programs. This task includes meeting with the IRS Subject Matter Experts frequently to gather any tacit knowledge related to the Internal Revenue Service,

Information Technology (IT) computer systems and services (i.e. Core Systems, Compliance Document Matching, and Solutions Engineering/Enterprise Services) or programs in development. The government estimates this task will take approximately four to six months to complete after the contract is awarded.

The Contractor shall appoint a knowledge transfer manager to oversee the transfer process. Prior to the process, the Contractor shall develop a draft Knowledge Transfer Plan (KTP) and present it to the Government within the first 15 business days after the contract is awarded. The KTP shall identify the Contractor resources and roles involved in the process, provide a list of risks and mitigation strategies for the transfer, and contain a detailed resource based project schedule. The KTP project schedule shall identify responsibilities, needs, milestones and lessons learned under the previous contract. The project schedule shall be at a sufficient level of detail to track progress on a bi-weekly basis, (i.e., all responsibilities will be detailed to a level such that no activity has duration of more than ten workdays).

The Government shall have 20 business days to review the draft KTP and provide comments to the Contractor. Government and Contractor representatives will then meet to discuss the comments after which the Contractor shall incorporate the agreed-upon changes and deliver a final KTP plan within five working days of the government's feedback.

The contractor shall meet with the IRS bi-weekly (once a month) to discuss the progress of the knowledge transfer. The Contractor shall follow an approved KTP schedule timeline and discuss any risks or concerns at this time.

The Contractor shall implement the KTP (to begin at the tax season) and provide a schedule of events. In addition, the Contractor shall complete the following readiness activities:

- customization of reporting capabilities.
- software customizations, if applicable.
- testing;
- help desk setup;
- training volunteers to use the software.

Task 7: Ramp Up Knowledge Transfer-Out

At the end of this contract, the Contractor shall provide transfer-out services. The Contractor shall facilitate the transition of contracted activities and services to a new Contractor in accordance with the Government Approved Transfer-Out Plan. The transition period shall not exceed 90 days after the new contract is awarded. Should the incumbent not be awarded the replacement contract, the Contractor will be required to support phase out activities and transition to the new Contractor including knowledge transfer, data transfer, system handover, support continuation training for successor and final deliverables. The Contractor shall provide a Knowledge Transfer Plan that is accepted by the Government and successfully completes knowledge transfer in accordance with the plan. The Contractor shall:

- Minimize transition impact to the user community.
- Ensure no breaks in service availability.
- Maintain existing service quality and performance levels.

- Ensure a transparent and seamless transition.
- Maintain support and meet delivery milestones of ongoing projects.
- Ensure that the IT security posture during transition is maintained at current levels without creating gaps and/or vulnerabilities.

4.8 Task 8: Period of Performance Summary Report

Customer Support Services for the IRS COR: The Contractor shall provide a full time point of contact (POC) to partner with the IRS Contracting Officer Representative (COR) to be available to discuss and address issues that may arise. The Contractor shall facilitate and participate in conference calls with IRS licenses at least twice a week at the beginning of the IRS' fiscal year starting in October of each year throughout the filing season to discuss updates to the software and field questions from partners. In addition, as part of filing season readiness (starting in May of each year), the contractor shall facilitate and/or participate in post filing season activities (lessons learned, training, meetings, etc.) as needed by the request of the IRS POC. The Contractor shall provide a period of performance summary report which provides details on accomplishments, challenges, proposed changes, strategic planning, and anything noteworthy for the preceding period.

The Contractor shall provide the ability for IRS licensees to designate additional notification points of contact (POC) who will also receive automatic e-mail notifications of updates and changes to the software. The Contractor shall partner with the IRS employee, partner, and volunteer communications relating to their products and services.

The Contractor POC shall respond to reasonable requests for customization of features within the software. Examples of such requests include linking bank products, linking to IRS training websites or custom default values including SIDN and EFIN within the software (to reduce volunteer burden).

The Contractor shall respond to requests for reports needed on previously described data fields and for information which are necessary for tax law and tax law changes. The Contractor shall create and run custom management reports at the request of the IRS POC. The reports may be generated for internal or external use.

The Contractor shall allow the IRS the right to include screenshots and Contractor product information materials in written materials and collateral, that will be used in support of the Tax Assistance Program. The Contractor shall partner with the IRS POC to verify accuracy of software screenshots and product information included in IRS publications. The Contractor may be asked to provide screenshots in the format needed to the IRS POC via email if the information is not readily available via the software.

The Government also reserves the right to request this report at any point during the performance of the contract at the discretion of the Contracting Officer. This ad hoc report, if desired, will only be requested once during the life of the contract and is in addition to the regularly scheduled Period of Performance Summary report.

The Contractor shall provide the Period of Performance Summary Report. The Contractor shall provide customer support/helpdesk to the licensee sites, deployment of software and associated materials and training to the volunteers. The goal is to facilitate open communications between

the Contractor and IRS POC. The Contractor and IRS POC shall remain in constant communication regarding the software, updates, reporting, required training, or any other tasks within the scope of the Statement of Work.

4.9 Task 9: Transition to Support

The transition to support process shall include, but not be limited, to the following:

Training requirements and materials:

The volunteers who are preparing tax returns and assisting taxpayers must have limited experience with tax preparation and using the Contractor's software. The Contractor shall provide/implement a method of delivery in which to provide training that is effective, efficient, and feasible to ensure that up to 96,000 volunteers and employees are trained to use the software. The Contractor shall provide/implement their methods to deliver online and face-to-face training.

The contractor's training methods shall include use of online training modules including videos, face-to-face, webinars, recordings of webinars, a practice environment to enter mock return information and Contractor facilitated training forums.

The Contractor should provide a testing environment for volunteer training purposes.

During contract performance, the contractor shall provide a beta version of all software and documentation, prior to it becoming commercially available, no later than October 15th of each year. This software will be made available to the IRS Workstations Standards Idea Lab for testing and to the IRS Point of Contact (POC).

Functionality of the Web-Based Professional Version and Desktop Professional Version is such that they would require the same training to use either of them. The contractor shall provide a training plan. The training plan will be subject to modification based on feedback from the IRS POC once the contract has been awarded. (Attachment 2 - Deliverables)

The contractor's training plan shall specify the following training details:

- trouble-shooting scenarios;
- a training progression;
- length of training;
- training schedule;
- course objectives;
- course content outline with each section or topic indicating user roles and user segments targeted;
- course material to include exercises and examples, for each user role and user segment;
- measurement method/tool to indicate successful completion of specific exercises or test; and
- a plan for IRS licensee training over the life of the contract.

The contractor's web-based training software must provide three second or shorter response

time.

The Contractor shall describe/provide/implement a registration process for student enrollment in training sessions.

The Contractor shall describe/provide/implement a method to capture participant data no later than 5 days after attending each training session.

The Contractor shall describe/provide/implement a method to customize the training curriculum and materials for IRS requirements based on user responsibilities. (See Attachment 1- Roles and Responsibilities)

The Contractor shall describe/provide/implement a method for training IRS volunteers without access to the internet.

The Contractor shall describe/provide/implement a method to access reference materials within the software.

The contractor shall provide a printed user guide to accompany each software package delivered. The contractor shall also make the user guide accessible online to all users. Training materials shall cover accurately preparing and filing tax returns, submitting the returns, generating reports, picking up acknowledgements, downloading files, and correcting rejected returns.

The Contractor shall make all training and electronic training materials available in English and Spanish.

The Contractor shall describe/provide/implement the method of providing training materials in all software versions.

The Contractor shall provide online training for multiple users per site to practice creating, modifying, and printing sample returns with solutions to practice problems.

The Contractor shall provide an online training environment that replicates the Desk/Web version of federal returns and requires users to create a unique account. The Contractor shall provide training materials for IRS use.

Software Production Environment: Software, Maintenance, Distribution, and Disaster Recovery (i.e. fix software bugs/problems, updates, and upgrades)

The Contractor shall provide/support/implement their:

- The Contractor shall ensure distribution of software.
- The Contractor shall ensure maintenance for software packages (including release notes for bug fixes, patches, notification regarding updates to users, and upgrades).
- The Contractor shall ensure a process for ordering, providing immediate acknowledgement of orders, tracking, and distributing software to the IRS and shipping to approximately 12,000 domestic and 70 international shipping addresses

which could include multiple deployments.

- The Contractor shall ensure a procedure for unused licenses to be transferred from one user to a different user.
- The system shall provide credit for unused licenses.
- Ability to provide deployment metrics back to the IRS Contracting Officer Representative such as real-time counts of the software units purchased, distributed, deployed, and un-delivered shipments.
- Ordering process that allows only the IRS COR or designee to place orders and authorize software distribution upon receipt of a signed delivery order.
- The system shall allow a site administrator to create a local network, to manage user accounts, passwords, system updates, shared printing, and other configurable features.

Availability Requirements at a minimum shall:

- Web-based software shall be available 99% of the time each week based on a 168-hour week and excluding time for weekly scheduled maintenance.
- Scheduled maintenance shall not disrupt VITA operations utilizing overnight updates as feasible.
- Web-based software shall provide a three (3) second system response/refresh time at all times that the system is available.
- Contingency plan in the event the web-based version is not available. Access codes shall be interchangeable between the web-based and desktop packages of professional software. That is, every access code may be used to activate either the web-based software or desktop software.

Disaster Recovery at a minimum shall include the following:

- The Contractor shall prepare/support/implement their disaster recovery plan and business continuity plan/procedures.
- The Contractor shall provide the results of disaster recovery tests. (See deliverable table).
- In the event of a catastrophe (natural disasters, technological failures, human threats, etc.) the Contractor shall provide a recovery to full service as quickly as possible (i.e. to prevent damage from exceeding 24 hours from the beginning of the reported

The disaster recovery/business continuity plan and instructions shall be provided to the IRS POC before event activation occurs.

- The Contractor shall provide the capability to re-establish IRS licensee's data files to a condition that existed no more than 2 hours before the interruption in the event of system failures or facility disasters to prevent loss of data and provide business continuity.

The Contractor shall deliver on-going training that is efficient and feasible to ensure that up to 96,000 volunteers and employees are trained to effectively use the software.

- During the initial contract year, the training sessions will start in August.
- In the following years following the initial contract year, training sessions will start in October and be available through January.
- The Contractor shall provide access to training materials as described in this statement of work.
- The Contractor shall provide a process that ensures efficient deployment(s) of the software to licensees or any other tasks within the scope of the Statement of

Work.

4.10 Task 10: Site File Upload to the Tax Software

In order to increase VITA/TCE partner flexibility and facilitate the remote preparation of tax returns at offsite partner tax locations, the contractor shall provide the capability for volunteers and taxpayers to upload, view, and store files to the tax software. Documents shall be uploaded to the contractor's secure servers using either a scanner and/or a mobile device. Uploaded files must be associated with a specific client tax account or return. Users will have the ability to label and delete files as needed. File storage will be unlimited, and uploaded files will not be automatically deleted until the tax software is taken down for revisions/upgrades for the following tax year (i.e., November or December). Files should be able to drag drop into preparation software. Ability to send email or link to taxpayer to upload documents and input the Form 13614-C.

4.11 Task 11: Direct Client Portal

In order to increase efficiency of interactions between VITA/TCE partners and clients, the contractor shall provide a client portal that allows for direct two-way communication between sites and clients. The portal will allow clients to:

The portal will allow clients to:

- 1) Sign-in to their account
- 2) Securely upload files, including income documents, to their account using a computer or other device. These documents should be able to drag/drop into software.
- 3) Fill out a Form 13614-C Intake and Diagnostics for preparer should be able to compare entries on intake with income documents and the prepared return and give the preparer any alerts/issues or mismatch that could cause an inaccurate return. The IRS SPEC definition of an accurate return is the intake sheet and source documents match the return prepared. It is important to know if the intake sheet and income or deductions that didn't end up on a return.
- 4) Contact the state or local VITA/TCE site.
- 5) Send or receive messages about their account from their tax preparation site

5. Performance

The base ordering period is a 12-month base period, with four (4) consecutive 12-month option ordering periods as listed below.

Base Period: August 17, 2026 – August 16, 2027

Option Period 1: August 17, 2027 – August 16, 2028

- Option Period 2: August 17, 2028 – August 16, 2029
- Option Period 3: August 17, 2029 – August 16, 2030
- Option Period 4: August 17, 2030 – August 16, 2031

Transition-in activities are required for the first (90) days of contract performance.

During the initial contract period, transition activities such as knowledge transfer, system setup, data migration, help desk stand-up, training material development, live web-based training sessions, and system testing and acceptance, will be started in August 2026.

In option years, training material development and live web-based training will be started in August and be completed before January each year.

Software shall operate at its full capacity by the beginning of the 2027 filing season (Tax Year 2026).

Software licenses are valid one year from November – November of each contract period.

6. Place of Performance:

The place of performance will primarily be at the Contractor's site. The award may be issued for performance to be at VITA sites, TCE site, Internal Revenue Service (IRS) facilities, and Treasury facilities. The specific place of performance will be specified within the contract.

On Ordering Procedures:

The Award will be issued to the Contractor using the pricing submitted for each deliverable, for the Contract Line-Item Number (CLIN), as the need for software and support arises. Awards issued against the contract will only be issued from the Program Management Office via a Contracting Officer and/or Contract Specialist when the Contracting Officer Representative (COR) or Program Officer requires the next level of support for a specific CLIN and a fully funded requisition is provided.

7. Ship to locations:

Unless otherwise specified, all deliverable work products shall be provided to the IRS COR and shipping to approximately 12,000 domestic and international shipping addresses which could include multiple delivery points.

8. Deliverables:

Unless otherwise requested in writing by the COR, work products shall be produced using Microsoft Office 2010 or later Professional products and delivered in accordance with the deliverable schedule under Award. Deliverable(s) must be submitted in media storage format, deliverables must be scanned and certified as virus free.

9. Ramp-up Period

Work under this agreement or work may require a ramp-up period at the initial start of this contract. Under the Ramp-up Period the Contractor will recruit and hire personnel specifically for this contract.

Refer to 4.6 TAC 6: RAMP-UP KNOWLEDGE TRANSFER-IN.

10. Other Administrative Data

10.1 Identification of Government Personnel

The COR designation will be identified by the CO's written designation memo. Similarly, the Alternate COR (ACOR) will be identified by the CO's written designation memo. The CO will identify the (COR/ACOR) via e-mail to the Contractor.

10.2 Performance Required Beyond Standard Workday

If needed, performance may be required beyond the standard workday. Beginning with the delivery of software through April, help desk support shall be available as follows: Mon - Fri: 8 AM ET - 12 AM ET and Sat and Sun: 8 AM ET - 8 PM ET. Post filing season, normal help desk hours are required Mon-Fri: 8 AM ET – 5 PM ET. In the case of a problem the expectation is that the Contractor will have someone working on it until it is resolved or a work around is established.

10.3 Personnel Removal and Replacement

The applicable contractor employees are subject to investigation by the government. Applicable contractor employees who undergo contractor clearances that reveal, but are not limited to, the following, may be unacceptable under this contract: conviction of a felony, a crime of violence or a serious misdemeanor, a record of arrests for continuing offenses, or failure to file on federal income tax. The government reserves the right to determine if a contractor employee assigned to a task shall continue with the task. The contractor shall agree to remove the person assigned within one day of official notification by the government and provide a replacement within five days. New hires or substitutions of personnel are subject to the contractor clearance requirement.

10.4 Deliverables/ Work Products

All contractor deliverables or work products shall remain categorized as "Official Use Only." The release of any portion must be authorized in writing by the government.

The contractor shall adhere to Section 508 of the Rehabilitation Act of 1973, which requires access to the Federal Government electronic and information technology. The law applies to all Federal agencies when they develop, procure, maintain, or use electronic and information technology. Federal agencies must ensure that the technology is accessible to employees and members of the public with disabilities. <http://www.section508.gov/>.

Each Electronic and Information Technology product or service furnished under this statement of work shall comply with the Federal Information Technology (EIT) Accessibility Standards (29 U.S.C. 7902-03).

For any product or service accepted under this contract by the Government that does not comply with (29 U.S.C. 7902-03), the contractor shall at the discretion of the Government, make every effort to replace or upgrade it with a compliant equivalent product or service, if commercially available and cost neutral, on either the planned refresh cycle of the product or service, or on the order renewal date, whichever shall occur first.

The contractor will be working with sensitive taxpayer data under this contract and must demonstrate the ability to pass all IRS security reviews required to receive access to encrypted sensitive taxpayer data.

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11. Contractor Requirements

The contractor will be working with sensitive taxpayer data under this contract and must demonstrate the ability to pass all IRS security reviews required to receive access to encrypted sensitive taxpayer data.

The Contractor shall meet the Minimum Operating System Requirements. The volunteer sites that will use the software utilize a wide variety of technology. The software must be able to operate with 1.0 GB of free hard drive space. Many sites use old versions of computer hardware and software, so the software must be compatible with older systems. The software (desktop & web-based) must operate on the specified minimum system requirements and maintain compatibility with newer systems as they become available.

The software, including sample software submitted, will be tested for compliance with the IRS Common Operating Environment (COE) to ensure the software will work in the IRS IT environment. That is, the software will not require nor be dependent on products not included within the IRS base product list. Example software included, but not limited to, in the COE is:

End User Equipment and Services Division
Standards Change & Release Mgmt.
Development & Standards
250 Murall Drive, Mailstop 5850
Kearneysville, WV 25430
304-260-3047



Base Software Installed on Windows 10.1803.64

New Driver Support: HPZ820, Existing Driver Support: EliteBook 2530p, EliteBook 2730p, EliteBook 6930p, EliteBook 8440p, HP ProBook 6440b, HP ProBook 6540b, EliteBook 8540p, EliteBook 8740w, HP ProBook 6450b, HP ProBook 6460b, HP

EliteBook2570p, HP ProBook 6470b, HP EliteBook 8570p, : EliteBook 8770w, EliteBook 820 G1, EliteBook 840 G1, EliteBook 850 G1, ZBook 14, ZBook 15, ZBook 17, ProBook 640 G1, DC5800, HP 6000 Pro, HP 6200 Pro, HP 6300 Pro, Z400 and HP ProDesk 600 G1.

- Windows 10 Professional Service Pack 1
- Internet Explorer 11
- Net Framework 3.5.1 (Includes .net Framework 2.0 SP2, 3.0 SP2 and 3.5 SP1)

Software Inventory			
Publisher	Title	Version	Installation Date
Symantec Corporation		8.1.6243.0	
HID Global Corporation	ActivID ActivClient 64	6.0	20190507
Adobe Systems Incorporated	Adobe Acrobat DC (2015)	15.006.30306	20190507
Adobe Systems Incorporated	Adobe Acrobat Reader DC (2015) MUI	15.006.30456	20190320
Adobe	Adobe Flash Player 32 NPAPI	32.0.0.171	
Adobe Systems, Inc.	Adobe Shockwave Player 12.3	12.3.1.201	
Symantec Corporation	Altiris Application Metering Agent	8.1.5636.0	20190507
Symantec Corporation	Altiris Inventory Agent	8.1.6288.0	20190507
Arellia Corporation	Arellia Agent	8.1.137.0	20190507
Arellia Corporation	Arellia Application Control Agent	8.1.1802.0	20190507

Arellia Corporation	Arellia Local Security Agent	8.1.1602.0	20190507
Arellia Corporation	Arellia Security Analysis Agent	8.0.1204.0	20190507
Internal Revenue Service	ARS Local Admin Sync Service	6.00.0	20190507
Bomgar Corporation	Bomgar Automatic Elevation Service	1.0.2.0	20190507
Bomgar	Bomgar Button 16.2.9 [bomgartest.enterprise.irs.gov]	16.2.9	20190507
Bomgar	Bomgar Button bomgartest.enterprise.irs.gov	16.2.9	20190507
Bomgar Corporation	Bomgar Virtual Smart Card Manager	1.0.0	20190507
Cisco Systems, Inc.	Cisco AnyConnect Diagnostics and Reporting Tool	4.5.05030	20190507
Cisco Systems, Inc.	Cisco AnyConnect Network Access Manager	4.5.05030	20190507
Cisco Systems, Inc.	Cisco AnyConnect Secure Mobility Client	4.5.05030	20190507
Cisco Systems, Inc.	Cisco AnyConnect Secure Mobility Client	4.5.05030	20190507
Cisco Systems, Inc.	Cisco AnyConnect Start Before Login Module	4.5.05030	20190507
Cisco Systems, Inc.	Cisco Jabber	11.6.0.35037	20190320
Cisco Systems, Inc.	Cisco ViewMail for Outlook	11.5.1002	20190320

Courion Corporation	DIRECT! CP	8.00.0003	20190320
Biscom	FAXCOM Image Driver x64	01.03.0402	20190506
Biscom	FAXCOM Suite for Windows Client	10.01.0140	20190506
HP	HP Hotkey Support	6.2.3	20190506
HP	HP PC Hardware Diagnostics UEFI	6.2.0	20190320
IBM Corp.	IBM BigFix Client	9.5.9.62	20190506
Singlewire Software, LLC	InformaCast Desktop Notifier	4.0	20190506
Intel Corporation	Intel(R) Management Engine Components	1.0.0.0	20190506
Intel Corporation	Intel(R) Management Engine Components	1.0.0.0	20190506
Intel Corporation	Intel(R) Management Engine Components	1829.12.0.1154	20190506
Intel Corporation	Intel(R) Management Engine Components	1.0.0.0	20190506
Intel	Intel(R) Network Connections Drivers	23.5	20190506
Intel Corporation	Intel(R) Processor Graphics	25.20.100.6577	20190506
Internal Revenue Service	Internal Revenue Service Network Printer Installer	1.0	20190506
ISC B	ISC BIND 9	9.9.6	20190320
Oracle Corporation	Java 8 Update 111	8.0.1110.14	20190507
Oracle Corporation	Java 8 Update 111 (64-bit)	8.0.1110.14	20190507
Microsoft Corporation	Microsoft InfoPath 2013	15.0.4753.1001	20190506

Microsoft Corporation	Microsoft InfoPath 2013	15.0.4753.1001	20190507
Microsoft Corporation	Microsoft InfoPath MUI (English) 2013	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Office 365 ProPlus - en-us	16.0.10000.20154	
Microsoft Corporation	Microsoft Office 64-bit Components 2013	15.0.4753.1001	20190508
Microsoft Corporation	Microsoft Office OSM MUI (English) 2013	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Office Proofing (English) 2013	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Office Proofing Tools 2013 – English	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Office Proofing Tools 2013 – Español	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Office Shared 64-bit MUI (English) 2013	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Office Shared 64-bit Setup Metadata MUI (English) 2013	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Office Shared MUI (English) 2013	15.0.4753.1001	20190507
Microsoft Corporation	Microsoft Office Shared Setup Metadata MUI (English) 2013	15.0.4753.1001	20190320
Microsoft Corporation	Microsoft Silverlight	5.1.50907.0	20190507
Microsoft Corporation	Microsoft Visio Viewer 2013	15.0.4420.1017	20190320

Microsoft Corporation	Microsoft Visual C++ 2005 Redistributable	8.0.61001	20190320
Microsoft Corporation	Microsoft Visual C++ 2005 Redistributable (x64)	8.0.50727.42	20190320
Microsoft Corporation	Microsoft Visual C++ 2005 Redistributable (x64)	8.0.50727.42	20190320
Microsoft Corporation	Microsoft Visual C++ 2008 Redistributable - x64 9.0.30729.6161	9.0.30729.6161	20190320
Microsoft Corporation	Microsoft Visual C++ 2008 Redistributable - x86 9.0.21022	9.0.21022	20190506
Microsoft Corporation	Microsoft Visual C++ 2008 Redistributable - x86 9.0.21022.218	9.0.21022.218	20190320
Microsoft Corporation	Microsoft Visual C++ 2008 Redistributable - x86 9.0.30729.6161	9.0.30729.6161	20190320
Microsoft Corporation	Microsoft Visual C++ 2010 x64 Redistributable - 10.0.40219	10.0.40219	20190320
Microsoft Corporation	Microsoft Visual C++ 2010 x86 Redistributable - 10.0.40219	10.0.40219	20190320
Microsoft Corporation	Microsoft Visual C++ 2012 Redistributable - x64 11.0.61030	11.0.61030.0	
Microsoft Corporation	Microsoft Visual C++ 2012 Redistributable (x86) - 11.0.61030	11.0.61030.0	
Microsoft Corporation	Microsoft Visual C++ 2012 x64 Additional Runtime - 11.0.61030	11.0.61030	20151022
Microsoft Corporation	Microsoft Visual C++ 2012 x64 Minimum Runtime - 11.0.61030	11.0.61030	20151022
Microsoft Corporation	Microsoft Visual C++ 2012 x86 Additional Runtime - 11.0.61030	11.0.61030	20190320

Microsoft Corporation	Microsoft Visual C++ 2012 x86 Minimum Runtime - 11.0.61030	11.0.61030	20190320
Microsoft Corporation	Microsoft Visual C++ 2013 Redistributable (x64) - 12.0.40660	12.0.40660.0	
Microsoft Corporation	Microsoft Visual C++ 2013 Redistributable (x86) - 12.0.40660	12.0.40660.0	
Microsoft Corporation	Microsoft Visual C++ 2013 x64 Additional Runtime - 12.0.40660	12.0.40660	20190320
Microsoft Corporation	Microsoft Visual C++ 2013 x64 Minimum Runtime - 12.0.40660	12.0.40660	20190320
Microsoft Corporation	Microsoft Visual C++ 2013 x86 Additional Runtime - 12.0.40660	12.0.40660	20190320
Microsoft Corporation	Microsoft Visual C++ 2013 x86 Minimum Runtime - 12.0.40660	12.0.40660	20190320
Microsoft Corporation	Microsoft Visual C++ 2017 Redistributable (x64) - 14.12.25810	14.12.25810.0	
Microsoft Corporation	Microsoft Visual C++ 2017 Redistributable (x86) - 14.12.25810	14.12.25810.0	
Microsoft Corporation	Microsoft Visual C++ 2017 x64 Additional Runtime - 14.12.25810	14.12.25810	20190320
Microsoft Corporation	Microsoft Visual C++ 2017 x64 Minimum Runtime - 14.12.25810	14.12.25810	20190320
Microsoft Corporation	Microsoft Visual C++ 2017 x86 Additional Runtime - 14.12.25810	14.12.25810	20190320
Microsoft Corporation	Microsoft Visual C++ 2017 x86 Minimum Runtime - 14.12.25810	14.12.25810	20190320
Microsoft Corporation	Office 16 Click-to-Run Extensibility Component	16.0.10730.20334	20190507

Microsoft Corporation	Office 16 Click-to-Run Extensibility Component 64-bit Registration	16.0.10730.20334	20190507
Microsoft Corporation	Office 16 Click-to-Run Licensing Component	16.0.10730.20334	20190507
Microsoft Corporation	Office 16 Click-to-Run Localization Component	16.0.10730.20334	20190507
OPNET Technologies	OPNET Application Capture Agent 3.9	3.9	20190320
Oracle	Oracle Enterprise Single Sign-On Client	11.1.2.3.1	20190507
Microsoft Corporation	Outils de vérification linguistique 2013 de Microsoft Office - Français	16.0.4753.1001	20190320
Symantec	Patch Management Agent	5620.0	20190507
PKWARE, Inc	SecureZIP Command Line for Windows	14.40.0028	20190320
PKWARE, Inc	SecureZIP for Windows	14.40.0028	20190320
MicrosoftP	Security Update for Microsoft Excel 2013 (KB4462204) 32-Bit Edition		
MicrosoftP	Security Update for Microsoft Office 2013 (KB4462204) 32-Bit Edition		
MicrosoftP	Security Update for Microsoft Office 2013 (KB4462204) 32-Bit Edition		
MicrosoftP	Security Update for Microsoft Office 2013 (KB4464504) 32-Bit Edition		
MicrosoftP	Security Update for Microsoft Office 2013 (KB4464504) 32-Bit Edition		
MicrosoftP	Security Update for Microsoft Office 2013 (KB4464504) 32-Bit Edition		
MicrosoftP	Security Update for Microsoft OneNote 2013 (KB3115256) 32-Bit Edition		
MicrosoftP	Security Update for Microsoft Project 2013 (KB4461489) 32-Bit Edition		

TechSmith Corporation	Snagit 2018	18.1.1	20190320
Altiris Inc.	Software Management Solution Plugin	8.1.6235.0	20190507
Adobe Systems, Inc	swMSM	12.0.0.1	20190320
Symantec Corporation	Symantec Endpoint Encryption Autologon Client	11.2.0 HF1	20190507
Symantec Corporation	Symantec Endpoint Encryption Client	11.2.0 HF1	20190507
Symantec Corporation	Symantec Endpoint Protection	12.1031.0100	20190507
Symantec Corporation	Symantec Management Console	12.1031.0100	20190507
Synaptics Incorporated	Synaptics Pointing Device Driver	9.17.203	20190507

The Contractor shall support Internet Explorer 11 and one or more of the following and future software versions:

- Chrome
- Firefox
- Safari
- Microsoft Edge

VITA COE:

Software Inventory			
Product	Title	Version	Date Installed

Adobe Systems
Incorporated

Adobe Acrobat Reader DC (2015) MUI

15.006.30456

20190530

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Adobe Systems Incorporated	Adobe Flash Player 29 NPAPI	29.0.0.140	
Adobe Systems, Inc.	Adobe Shockwave Player 12.3	12.3.1.201	
Google LLC	Google Chrome	74.0.3729.136	20190530
Google LLC	Google Update Helper	1.3.2.1	20190530
Hewlett-Packard Company	HP Quick Launch Buttons	6.50.17.1	20190530
Microsoft Corporation	Microsoft Silverlight	5.1.2.14.0	20190530
Microsoft Corporation	Microsoft Visual C++ 2005 Redistributable	8.0.50727.42	20190530
Microsoft Corporation	Microsoft Visual C++ 2005 Redistributable (x64)	8.0.50727.42	20190530
Microsoft Corporation	Microsoft Visual C++ 2008 Redistributable - x64 9.0.30729.6161	9.0.30729.6161	20190530
Microsoft Corporation	Microsoft Visual C++ 2008 Redistributable - x86 9.0.30729.6161	9.0.30729.6161	20190530
Microsoft Corporation	Microsoft Visual C++ 2010 x64 Redistributable - 10.0.40219	10.0.40219	20190530
Microsoft Corporation	Microsoft Visual C++ 2010 x86 Redistributable - 10.0.40219	10.0.40219	20190530
Microsoft Corporation	Microsoft Visual C++ 2012 Redistributable (x64) - 11.0.61030	11.0.61030.0	
Microsoft Corporation	Microsoft Visual C++ 2012 Redistributable (x86) - 11.0.61030	11.0.61030.0	
Microsoft Corporation	Microsoft Visual C++ 2012 x64 Additional Runtime - 11.0.61030	11.0.61030	20190530
Microsoft Corporation	Microsoft Visual C++ 2012 x64 Minimum Runtime - 11.0.61030	11.0.61030	20190530

Microsoft Corporation	Microsoft Visual C++ 2012 x86 Additional Runtime - 11.0.61030	11.0.61030	20190530
Microsoft Corporation	Microsoft Visual C++ 2012 x86 Minimum Runtime - 11.0.61030	11.0.61030	20190530
Microsoft Corporation	Microsoft Visual C++ 2013 Redistributable (x64) - 12.0.40660	12.0.40660	
Microsoft Corporation	Microsoft Visual C++ 2013 Redistributable (x86) - 12.0.40660	12.0.40660.0	
Microsoft Corporation	Microsoft Visual C++ 2013 x64 Additional Runtime - 12.0.40660	12.0.40660	20190530
Microsoft Corporation	Microsoft Visual C++ 2013 x64 Minimum Runtime - 12.0.40660	12.0.40660	20190530
Microsoft Corporation	Microsoft Visual C++ 2013 x86 Additional Runtime - 12.0.40660	12.0.40660	20190530
Microsoft Corporation	Microsoft Visual C++ 2013 x86 Minimum Runtime - 12.0.40660	12.0.40660	20190530
Microsoft Corporation	Microsoft Visual C++ 2017 Redistributable (x64) - 14.12.25810	14.12.25810.0	
Microsoft Corporation	Microsoft Visual C++ 2017 Redistributable (x86) - 14.12.25810	14.12.25810.0	
Microsoft Corporation	Microsoft Visual C++ 2017 x64 Additional Runtime - 14.12.25810	14.12.25810	20190530
Microsoft Corporation	Microsoft Visual C++ 2017 x64 Minimum Runtime - 14.12.25810	14.12.25810	20190530
Microsoft Corporation	Microsoft Visual C++ 2017 x86 Additional Runtime - 14.12.25810	14.12.25810	20190530
Microsoft Corporation	Microsoft Visual C++ 2017 x86 Minimum Runtime - 14.12.25810	14.12.25810	20190530
Hewlett-Packard	QLBCASL	6.40.17.2	20190530

PKWARE, Inc	SecureZIP Command Line for Windows 14.40.0028	14.40.0028	20190530
PKWARE, Inc	SecureZIP for Windows 14.40.0028	14.40.0028	20190530
Analog Devices	SoundMAX	6.10.2.7	20190531
Adobe Systems, Inc	swMSM	15.0.0.1	20190530
Symantec Corporation	Symantec Endpoint Encryption Framework Client	8.2.1 MP16	20190530
Symantec Corporation	Symantec Endpoint Encryption Full Disk Edition Client	8.2.1 MP16	20190530
Synaptics Incorporated	Synaptics Pointing Device Driver	15.0.17.4	

The Contractor shall support the following drivers:

- Lexmark Universal Print Driver
- HP Universal Print Driver
- Data Clean application that works on the hard drive

12. Performance Requirements, Standards and Surveillance

The Government believes there is value in incorporating Performance-Based Service Acquisition (PBSA) methodology with outcomes-based focus for this work. The Government will monitor and evaluate contractor performance in accordance with Attachment 4 – Quality Assurance and Surveillance Plan (QASP).

The Contractor shall establish and maintain a complete Quality Control Plan (QCP) in accordance with Section 7 of Attachment 4. The Contractor's QCP shall be linked with the Government quality assurance efforts to achieve the Government's objectives.

12.1 Additional Requirements

The Contractor shall ensure that all deliverables are clearly marked with the contract number and visible on all shipping/service documents, containers, and invoices. Inspection will be at the same place as performance and delivery, unless otherwise specified.

12.2 General Acceptance Criteria

The general quality measures as set forth below will be applied to each work product received

from the contractor under this contract and any resulting contract award.

- Accuracy - work products shall be accurate in presentation, technical content, and adherence to accepted elements of style.
 - Clarity - work products shall be clear and concise; engineering terms shall be used, as appropriate. All diagrams shall be easy to understand and relevant to the supporting narrative.
 - Specifications Validity - All work products must satisfy the requirements of the Government as specified herein.
 - Format - work products shall be submitted in hard copy (when applicable) and in media defined in the statement of work. All text and diagrammatic files shall be editable by the Government.
 - Timeliness - work products shall be submitted on or before the due date specified in the contract or submitted in accordance with a later, scheduled date determined by the CO.
- Customized Acceptance Criteria (Standard criteria plus the additional elements listed below)

12.3 Review of Deliverables

- a) The Government will perform an initial review of deliverables, and if problems are encountered during the review, the contractor must correct them. If necessary, a meeting may be convened to resolve any differences. The contractor shall make all required changes to achieve an acceptable deliverable. The Government will perform its review within approximately 15 calendar days from receipt of the deliverable or as otherwise specified in each contract.
- b) When the review of a deliverable results in necessary modifications, the Government will, in accordance with the contract, provide the necessary documentation to correct the deliverable. It is then the responsibility of the contractor to properly and consistently incorporate the changes in the final product.
- c) The procedures shall not be construed to constitute a waiver on the part of the Government of its rights under FAR, part 49.4, entitled "Termination for Default", nor of any other rights or remedies provided by law or under this contract.

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LIST OF ATTACHMENTS

Attachment 1 – Roles and Responsibilities – 1 Page

Attachment 2 – Deliverables – 16 Pages

Attachment 3 – Applicable IRS Publications - 1 Page

Attachment 4 – Quality Assurance Surveillance Plan (QASP) – 9 Pages

Attachment 5 – Glossary – 6 pages

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Attachments

Permissions Assigned to Each User

	Administrator	Super User	Return Preparer	Template Manager	Interviewer	Reviewer	E-File Manager
Mark Returns Complete/Ready to E-file	X	X	X			X	
Send Return to IRS	X	X					X
Delete/Deactivate Returns	X						
Open Existing Return	X	X			X	X	
Print Returns	X	X					
Return Query	X	X	X		X	X	X
Manage Templates	X			X			
Add/edit users	X						
Create new returns			X				
Move returns between users	X	X					
View/Access all returns	X	X				X	
Reset User Password	X						
View/Receive Acknowledgements	X						X

Attachment 2 – Deliverables

Base Ordering Period (08/17/2026 – 08/16/2027)					
SOW Section	Description	Expected Format	Period of Performance/ Delivery	QTY	Unit
4.2	8,500 Perpetual Software Licenses	One license per site Internet and CD/DVD	1 year (Nov - Nov)	1	Lot
4.9	Distribution/Shipping of Software if Separately priced	CD/DVD	2 business days domestic from date of order; 4 business days international from date of order	1	Lot
4..9	Printed user guide to accompany each software package delivered. User guide accessible online to all users	Web based and printed materials	Upon Delivery of license per EFIN	1	Lot
4.2	Final Desktop Version of software including all updates for the tax year	CD/DVD	August	1	Lot
4.2	Optional Perpetual Software license per Guides in increments of 1 - 500	One license per site Internet and	Oct 1 - Oct 30	500	Each
4.9	Finalized disaster recovery plan and business continuity plan/procedures for IR comment		At Contract Award	1	Each
4.9	Finalized disaster recovery plan and business continuity plan/procedures for IR comment	Electronic file and Paper copy	Within (30) Days of Contract Award	1	Each

Attachment 2 – Deliverables

Attachment 2 – Deliverables

4.9	Results of the disaster recovery tests	Email	Annually at a minimum within two weeks of the conclusion of the test	1	Each
4.4	Notification that system is down.	Email and Telephone call	No later than (15) minutes after initial discovery	1	Each
4.4	Notification that system is restored.	Email and Telephone call	No later than (15) minutes after resolving the problem	1	Each
4.2	Weekly Management Reports	Formal Report	Weekly after beginning filing season Jan - Apr 30	16	Each
4.2	Monthly Management Reports	Formal Report	May - Dec	8	Each
4.3	Ad Hoc Management Reports	Formal Report	Upon Request	1	Each
4.9	Deployment Metrics Report for Ordering/Shipping. See glossary for context.	Excel Spreadsheet	Per Shipping Automation	1	Each
4.9	Deployment Metrics report that provides the information requested by the customer as undeliverable	Email	Weekly	52	Each
4.4	Monthly Helpdesk Support Metrics	Formal Report	5th day of preceding month	12	Each
4.4	Help Desk Support Log	Excel Spreadsheet/Word Document	Every two weeks	26	Each

Attachment 2 – Deliverables

Attachment 2 – Deliverables

4.8	Period of Performance Summary Report	Formal Report	Oct and June	2	Each
4.6	Training to use the software	Online, face-to-face, webinars, Contractor facilitated, formatted lessons, etc.	During the initial contract year, the live training sessions will be started in May	1	Each
4.9	Recordings of webinars	CD/DVD or Internet	Made available within (7) days after the webinar	1	Each
4.9	Practice environment to enter mock return information and solutions	Online	During the initial contract year, the practice environment will be made available continuously starting in May	1	Each
4.9	Training Materials	Formatted lessons in English and Spanish: CD/DVD or Internet	During the initial contract year, the training materials will be made available continuously starting in May	1	Each
4.8 & 4.9	Updates to web-based training and training materials due to software and applicable tax law changes	Web access (i.e., Weblog), email notifications, release notes, etc.	Within (60) Days of the changes	1	Each
4.8	Availability and permission to use screen shots	Web based and printed materials	As needed	1	Each
4.6	Formatted Training Plan including schedule of training sessions	Document	At Contract Award	1	Each

Attachment 2 – Deliverables

4.9	Program office requires access to the software and user guide to perform transition activities, training, developing training materials, etc.	CD/DVD, Internet, Printed User Guide	At Contract Award	1	Each
4.7	Transition Phase Out (Optional)	Certificate of Data Destruction	Optional	1	Each

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Attachment 2 – Deliverables

Option 1 Ordering Period (08/17/2027 – 08/16/2028)					
SOW Section	Description	Expected Format	Period of Performance/ Delivery	QTY	Unit
4.2	8,500 Perpetual Software Licenses	One license per site Internet and CD/DVD	1 year (Nov - Nov)	1	Lot
4.9	Distribution/Shipping of Software if Separately priced	CD/DVD	2 business days domestic from date of order; 4 business days international from date of order	1	Lot
4.9	Printed user guide to accompany each software package delivered. User guide accessible online to all users	Web based and printed materials	Upon Delivery of license EFIN	1	Lot
4.2	Final Desktop Version of software including all updates for the tax year	CD/DVD		1	Lot
4.2	Optional Perpetual Software licenses/User Guides in increments of 1 - 500	One license per site Internet and CD/DVD	Oct - Sept 30	500	Each
4.9	Disaster recovery plan and business continuity plan. Includes status plan. Includes changes if applicable	Email	November	1	Each
4.9	Results of the disaster recovery tests	Email	Annually at a minimum within two weeks of the conclusion of the test	1	Each
4.4	Notification when system is down.	Email and Telephone call	No later than (15) minutes	1	Each

Attachment 2 – Deliverables

Attachment 2 – Deliverables

			after initial discovery		
4.4	Notification that system is restored.	Email and Telephone call	No later than (15) minutes after resolving the problem	1	Each
4.2	Weekly Management Reports	Formal Report	Weekly after beginning of filing season Jan - Apr 30	16	Each
4.2	Monthly Management Reports	Formal Report	May - Dec	8	Each
4.3	Ad Hoc Management Reports	Formal Report	Upon Request		Each
4.9	Deployment Metrics Report for Ordering/Shipping. See glossary for contents.	Excel Spreadsheet	Per Shipping Authorization	1	Each
4.9	Deployment Metrics report that provides the addresses that were rejected by the carrier as undeliverable	Email	Weekly	52	Each
4.4	Monthly Helpdesk Support Metrics	Formal Report	5th of following month	12	Each
4.4	Help Desk Call Log	Excel Spreadsheet/Word Document	Every two weeks	26	Each
4.8	Period of Performance Summary Report	Formal Report	Oct and June	2	Each
4.6	Training to use the software	Online, face-to-face, webinars, Contractor facilitated, formatted lessons, etc.	Live training sessions will be started in Oct and be	1	Each

Attachment 2 – Deliverables

			completed before Jan 31st		
4.9	Recordings of webinars	CD/DVD or Internet	Made available within (7) days after the webinar	1	Each
4.9	Practice environment to enter mock return information and solutions	Online	November - October	1	Each
4.9	Training Materials	Formatted lessons in English and Spanish: CD/DVD or Internet	November	1	Each
4.8 & 4.9	Updates to web-based training and training materials due to software and any applicable tax law changes	Web Access (i.e. blog), email notifications, relevant notes, etc.	Within (60) Days of the changes	1	Each
4.8	Availability and permissions to use screen shots	Web based and printed materials	As needed	1	Each
4.6	Modified Training Manual including schedule of events	Document	August	1	Each
4.9	Program office request for access to the software and materials to perform transition activities, training, develop training materials,	CD/DVD, Internet, printed User Guide	August	1	Each
4.7	Transition Phase Out (Optional)	Certificate of Data Destruction	Optional	1	Each

Attachment 2 – Deliverables

Option 2 Ordering Period (08/17/2028 – 08/16/2029)					
SOW Section	Description	Expected Format	Period of Performance/ Delivery	QTY	Unit
4.2	8,500 Perpetual Software Licenses	One license per site Internet and CD/DVD	1 year (Nov - Nov)	1	Lot
4.9	Distribution/Shipping of Software if Separately priced	CD/DVD	2 business days domestic from date of order; 4 business days international from date of order	1	Lot
4.9	Printed user guide to accompany each software package delivered. User guide accessible online to all users	Web based and printed materials	Upon Delivery of license per EFIN	1	Lot
4.2	Final Desktop Version of software including all updates for the tax year	CD/DVD	August	1	Lot
4.2	Optional Perpetual Software license per Guides in increments of 1 - 500	One license per site Internet and CD/DVD	Oct 1 - Sept 30	500	Each
	Disaster recovery and business continuity plan/procedures status document outlining changes if applicable	Email	November	1	Each

Attachment 2 – Deliverables

4.9	Results of the disaster recovery tests	Email	Annually at a minimum within two weeks of the conclusion of the test	1	Each
4.4	Notification that system is down.	Email and Telephone call	No later than (15) minutes after initial discovery	1	Each
4.4	Notification that system is restored.	Email and Telephone call	No later than (15) minutes after resolving the problem	1	Each
4.2	Weekly Management Reports	Formal Report	Weekly after beginning of filing season Jan - Apr	6	Each
4.2	Monthly Management Reports	Formal Report	May - Dec	8	Each
4.3	Ad Hoc Management Reports	Formal Report	Ad Hoc Request	1	Each
4.9	Deployment Metrics Report for Ordering/Shipping. See glossary for contents.	Excel Spreadsheet	Order Shipping Confirmation	1	Each
4.9	Deployment Metrics report that provides addresses that were rejected by the carrier as undeliverable	Excel Spreadsheet	Weekly	52	Each
4.4	Monthly Help Desk Support Metrics	Formal Report	5th day of preceding month	12	Each
4.4	Help Desk Call Log	Excel Spreadsheet/Word Document	Every two weeks	26	Each
4.8	Periodic Performance Summary Report	Formal Report	Oct and June	2	Each

Attachment 2 – Deliverables

4.6	Training to use the software	Online, face-to-face, webinars, Contractor facilitated, formatted lessons, etc.	Live training sessions will be started in Oct and be completed before Jan 31st	1	Each
4.9	Recordings of webinars	CD/DVD or Internet	Made available within (7) days after the webinar	1	Each
4.9	Practice environment to enter mock return information and solutions	Online	November - October	1	Each
4.9	Training Materials	Formatted lessons in English and Spanish: CD/DVD or Internet	November	1	Each
4.8 & 4.9	Updates to web-based training and training materials due to software and any applicable tax law changes	Web Access (i.e. blog), email notifications, release notes, etc.	Within (60) Days of the change	1	Each
4.8	Availability and permissions to use screen shots	Web based and printed materials	As needed	1	Each
4.6	Modified Training Plan including schedule of tests	Document	August	1	Each
4.7	Program office request for access to the software and user guide to perform transition activities, training, developing training materials, etc.	CD/DVD, Internet, printed User Guide	August	1	Each
4.7	Transition Plan Out (Optional)	Certificate of Data Destruction	Optional	1	Each

Attachment 2 – Deliverables

Attachment 2 – Deliverables

Option 3 Ordering Period (08/17/2029 – 08/16/2030)					
SOW Section	Description	Expected Format	Period of Performance/ Delivery	QTY	Unit
4.2	8,500 Perpetual Software Licenses	One license per site Internet and CD/DVD	1 year (Nov - Nov)	1	Lot
4.9	Distribution/Shipping of Software if Separately priced	CD/DVD	2 business days domestic from date of order; 4 business days international from date of order	1	Lot
4.9	Printed user guide to accompany each software package delivered. User guide accessible online to all users	Web based and printed materials	Upon Delivery license period 12 months	1	Lot
4.2	Final Desktop Version of software including all updates for the tax year	CD/DVD	August	1	Lot
4.2	Optional Perpetual Software licenses/User Guides in increments of 1 - 500	One license per site Internet and CD/DVD	Oct 1 - Sep 30	500	Each
4.9	Disaster recovery plan and business continuity plan/procedures statement document outlining changes if applicable	Email	November	1	Each
4.9	Results of the disaster recovery test	Email	Annually at a minimum within two weeks of the conclusion of the test	1	Each
4.4	Notification that system is down.	Email and Telephone call	No later than (15) minutes after initial discovery	1	Each
4.4	Notification that system is restored.	Email and Telephone call	No later than (15) minutes after resolving the problem	1	Each

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4.2	Weekly Management Reports	Formal Report	Weekly after beginning of filing season Jan - Apr 30	16	Each
4.2	Monthly Management Reports	Formal Report	May - Dec	8	Each
4.3	Ad Hoc Management Reports	Formal Report	Upon Request	1	Each
4.9	Deployment Metrics Report for Ordering/Shipping. See glossary for contents.	Excel Spreadsheet	Per Shipping Authorization	1	Each
4.9	Deployment Metrics report that provides the addresses that were rejected by the carrier as undeliverable	Email	Weekly	52	Each
4.4	Monthly Helpdesk Support Metrics	Formal Report	5th day of preceding month		Each
4.4	Help Desk Call Log	Excel Spreadsheet/Word Document	Every two weeks		Each
4.8	Period of Performance Summary Report	Formal Report	Oct and June		Each
4.6	Training to use the software	Face-to-face, web-based, or self-paced. Content for facilitator or learner. Formatted lessons.	Learning sessions will start in Oct and be completed by Jan 31st	1	Each
4.9	Recordings of webinars	CD/DVD or Internet	Made available within (7) days after the webinar	1	Each
4.9	Practice environment to enter mock return information and solution	Web-based	November - October	1	Each
4.9	Training Materials	Formatted lessons in English and Spanish: CD/DVD or Internet	November	1	Each

Attachment 2 – Deliverables

4.8 & 4.9	Updates to web-based training and training materials due to software and any applicable tax law changes	Web Access (i.e. blog), email notifications, release notes, etc.	Within (60) Days of the changes	1	Each
4.8	Availability and permissions to use screen shots	Web based and printed materials	As needed	1	Each
4.6	Modified Training Plan including schedule of events	Document	August	1	Each
4.9	Program office requires access to the software and user guide to perform transition activities, training, developing training materials, etc.	CD/DVD, Internet, Printed User Guide	August	1	Each
4.7	Transition Phase Out (Optional)	Certificate of Data Destruction	Optional	1	Each

Attachment 2 – Deliverables

Option 4 Ordering Period (08/17/2030 – 08/16/2031)					
SOW Section	Description	Expected Format	Period of Performance/ Delivery	QTY	Unit
4.2	8,500 Perpetual Software Licenses	One license per site Internet and CD/DVD	1 year (Nov - Nov)	1	Lot
4.9	Distribution/Shipping of Software if Separately priced	CD/DVD	2 business days domestic from date of order; 4 business days international from date of order	1	Lot
4.9	Printed user guide to accompany each software package delivered. User guide accessible online to all users	Web based and printed materials	Upon Delivery of license per EFIN	1	Lot
4.2	Final Desktop Version of software including all updates for the tax year	CD/DVD	August	1	Lot
4.2	Optional Perpetual Software licenses and Guides in increments of 1 - 500	One license per site Internet and CD/DVD	Oct 1 - 31/2030	500	Each
	Disaster recovery plan and business continuity plan/procedures status document outlining changes if applicable	Email	November	1	Each

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4.9	Results of the disaster recovery tests	Email	Annually at a minimum within two weeks of the conclusion of the test	1	Each
4.4	Notification that system is down.	Email and Telephone call	No later than (15) minutes after initial discovery	1	Each
4.4	Notification that system is restored.	Email and Telephone call	No later than (15) minutes after resolving the problem	1	Each
4.2	Weekly Management Reports	Formal Report	Weekly after beginning of filing season Jan - Apr 30	1	Each
4.2	Monthly Management Reports	Formal Report	May - Dec	1	Each
4.3	Ad Hoc Management Reports	Formal Report	Upon request	1	Each
4.9	Deployment Metrics Report for Ordering/Shipping. See glossary for contents.	Excel Spreadsheet	Following Automation	1	Each
4.9	Deployment Metrics report that provides the addresses that were rejected by carrier	Email	Weekly	52	Each
	Monthly Helpdesk Support Metrics	Formal Report	5th day of preceding month	12	Each
4.4	Helpdesk Call Log	Excel Spreadsheet/Word Document	Every two weeks	26	Each
4.8	Period of Performance Summary Report	Formal Report	Oct and June	2	Each

Attachment 2 – Deliverables

4.6	Training to use the software	Online, face-to-face, webinars, Contractor facilitated, formatted lessons, etc.	Live training sessions will be started in Oct and be completed before Jan 31st	1	Each
4.9	Recordings of webinars	CD/DVD or Internet	Made available within (7) days after the webinar	1	Each
4.9	Practice environment to enter mock return information and solutions	Online	November - October	1	Each
4.9	Training Materials	Formatted lessons in English and Spanish: CD/DVD or Internet	November	1	Each
4.8 & 4.9	Updates to web-based training and training materials due to software and any applicable tax law changes	Web Access (i.e. blog), email notifications, release notes, etc.	Within (60) Days of the change	1	Each
4.8	Availability and permissions to use screen shots	Web based and printed materials	As needed	1	Each
4.6	Modified Training Plan including schedule of activities	Document	August	1	Each
4.6	Program office request for access to the software and user guide to perform transition activities, training, developing training materials, etc.	CD/DVD, Internet, Printed User Guide	August	1	Each
4.7	Transition Plan Out (Optional)	Certificate of Data Destruction	Optional	1	Each

Attachment 3 – Applicable IRS Publications

Applicable IRS Publications

[Publication 1075](#), Tax Information Security Guidelines for Federal, State and Local Agencies (Rev. 11-2021)

[Publication 5683](#), VITA/TCE Handbook for Partners and Site Coordinators (Rev. 09-2025)

[Publication 4012](#), VITA/TCE Volunteer Resource Guide (Rev. 09-2025)

[Publication 1345](#), Handbook for Authorized IRS e-file Providers of Individual Income Tax Returns (Rev. 12-2025)

[Publication 1436](#), Assurance Testing System (ATS) Guidelines for Modernized e-File (MeF) Individual Tax Returns for Tax Year 2018 Revenue Procedure 2018-010, Authorized IRS e-file Provider Responsibilities (Rev. 10-2025)

[Publication 3112](#), IRS e-file Application and Participation (Rev. 01-2025)

[Publication 4164](#), Modernized e-File (MeF) Guide for Software Developers and Transmitters (Rev. 12-2025)

[Publication 4812](#), Contractor Security & Privacy Guidelines (Rev. 12-2025)

1. Purpose

This contract is on behalf of the Customer Assistance, Relationships and Education (CARE) organization within the Internal Revenue Service (IRS) Wage and Investment Division to provide both desktop, web-based and self-preparer electronic tax preparation and transmission software and support. The software supports IRS tax assistance programs that include the IRS Employees (Employee electronic file), Tax Counseling for the Elderly (TCE), and Volunteer Income Tax Assistance (VITA). This is a fixed price, indefinite-delivery, indefinite-quantity contract with a period of performance of one year with 4 one-year option periods. All product and services required under this contract are ordered through the issuance of delivery orders.

The purpose of the Quality Assurance Surveillance Plan (QASP) is to describe the methods the IRS will use and to identify the documentation and resources the IRS will employ to monitor the Contractor's performance under this contract. The plan will define the roles and responsibilities of all members of the project team, identify the performance objectives, define the methodologies used to monitor and evaluate the Contractor's performance, describe quality assurance documentation requirements, and describe the analysis of quality assurance monitoring results.

The QASP provides a means for evaluating whether the Contractor is meeting the performance standards and quality levels identified in the statement of work and ensures that the Government pays only for the level of services it receives.

2. Authority

The authority for the issuance of the QASP is provided under FAR 46.4, Government Contract Quality Assurance, which requires that the Government shall be informed as necessary to make determinations if supplies or services conform to contract requirements.

3. Scope

The Contractor is responsible for the quality of the work performed. The Contractor measures that quality through the Contractor's quality control program. Quality control is work output, not workers, and therefore includes all work performed under this contract regardless of whether the work is performed by Contractor employees or by subcontractors.

Attachment 4 – Quality Assurance Surveillance Plan

The government representative(s) will monitor performance to determine how the Contractor is performing against communicated performance objectives. The government will make a determination regarding incentives based on performance measurement metric data and notify the Contractor of those decisions. The Contractor will be responsible for making required changes in processes and practices to ensure performance is managed effectively.

4. Roles and Responsibilities

4.1 Contracting Officer – **TBD**

The Contracting Officer (CO) is responsible for monitoring contract compliance and contract administration. The CO is also responsible for resolving any differences between the observations documented by the Contracting Officer's representative (COR) and the Contractor. The CO will designate one full-time COR as the government authority for performance management; however, the CO is ultimately responsible for the final determination of the adequacy of the Contractor's performance.

4.2 Contracting Officer's Representative – **TBD**

The Contracting Officer's Representative (COR) has been designated by the CO to act as his or her authorized representative to assist in administering the contract. The COR is responsible for technical administration of the project and ensures proper government surveillance of the Contractor's performance. The COR is not empowered to make any commitments or to authorize any contractual changes on the government's behalf. Any changes that the Contractor may affect contract price, terms, or conditions shall be referred to the CO for action. The COR will have the responsibility for completing Quality Assurance (QA) monitoring forms used to document the inspection and evaluation of the Contractor's work performance.

4.3 Program Manager – **TBD**

The Program Manager (PM) has been designated by the US Wage and Investment Division to manage the program for the IRS. The PM is responsible for providing resources to implement the QASP and utilizing the surveillance results to make program decisions. The PM is also the central point of contact for the user community and the IRS executive management staff and will provide feedback to and from those parties to the CO and COR.

4.4 Contracting Specialist – See section 4.1 above.

5. Performance Standards

Performance Standards define desired outcome levels for products or services. The IRS will perform surveillance to determine if the Contractor exceeds, meets or does not meet these standards. The Performance Requirements Summary (PRS) Matrix in Section 10 of this QASP sets forth the performance standards for this contract and establishes the Acceptable Quality Levels (AQL) for each standard. The IRS shall use these standards to monitor Contractor performance by comparing actual performance to the AQLs.

6. Acceptable Quality Levels

The acceptable quality levels (AQLs) included in the PRS Matrix are structured to allow the Contractor to manage how the work is performed while providing negative incentives for performance shortfalls. Levels of performance are keyed to the relative importance of the task to the overall mission performance.

7. Incentives

If the Contractor meets the required service or performance level, it will be paid the full amount set forth in the contract delivery order and will receive positive past performance ratings. Failure to meet the required service or performance levels will result in a deduction from the delivery order the amount for the defective work/services (until the work/services are corrected to an acceptable level) or negative past performance ratings or both.

8. Methodologies to Monitor of QA Surveillance

The following methods of surveillance shall be used by the COR in the technical administration of this QASP.

8.1 Surveillance Techniques

To ensure the vendor is adhering to the contract, the Government is utilizing the following measures below to evaluate Contractor performance. The primary methods of surveillance are:

- Close monitoring
- Inspection
- Testing

Attachment 4 – Quality Assurance Surveillance Plan

- Random Sampling
- Reports
- Validated User/Customer Complaints and Observations

9. Documentation

The COR will provide reports to the CO in accordance with Section 12.2 below documenting the performance of the Contractor in meeting the performance standards. The COR will maintain a complete Quality Assurance file. The file will contain copies of all reports, evaluations, recommendations, and any actions related to the Government's performance of the quality assurance function. All such records will be maintained for the life of the contract. The COR shall forward these records to the CO at termination or completion of the contract.

10. Performance Requirements Summary Matrix

The Performance Requirements Summary Matrix below sets forth the performance standards, acceptable quality levels, methods of surveillance and impact for the identified products and services provided by the Contractor.

Performance Requirements Summary Matrix

Required Services/Tasks	Performance Standards	Method of Surveillance (GPO)	AQL	Deduction
Overall Contract Management, Including Timeliness	Contractor maintains high level of quality assurance,	Deliverables; COR and Contracting Officer monitoring and verification of	COR makes no more than 2 valid complaints	(1) Negative impact on past performance rating; possible termination

Attachment 4 – Quality Assurance Surveillance Plan

Required Services/Tasks	Performance Standards	Method of Surveillance (Q/A)	AQL	Deduction
	responsiveness to the COR and Contracting Specialist/Officer, reliability, completeness of tasks; contacts the COR/CO immediately with any issues or problems; meets time frames in the delivery schedule.	accuracy and quality	during each contract period. No more than a two-week delay agreed upon schedule	
Mandatory Software Requirements	The software provided (desktop, web-based and self-preparer) shall be capable of accurately processing tax payer data in accordance with the functional and technical requirements in accordance with the requirements of the SOW.	Software inspection, testing, random sampling, reports, validate user/customer complaints and observations	% of tax returns processed monthly	(1) Negative impact on past performance rating; possible termination
Performance and Reliability	Web-based software monitoring, and validated user/customer complaints and observations	99% availability per week (Based on a 168-hour week and excluding weekly scheduled maintenance)		(1) Negative impact on past performance rating; possible termination
Management Reports	The Contractor will provide weekly management reports in	COR monitoring and other		(1) Negative impact on past performance

Attachment 4 – Quality Assurance Surveillance Plan

Attachment 4 – Quality Assurance Surveillance Plan

Required Services/Tasks	Performance Standards	Method of Surveillance (Q/A)	AQL	Deduction
	accordance with the requirements of the SOW. High-quality written materials are produced.	reviewers' comments on draft and final products; validated user/customer complaints and observations	99% of reports provided timely per month Successful review by CMO; minimal re-writing or editing required.	rating; possible termination
Help Desk Support	Each caller must receive a successful resolution to his problem while on the initial call 95% of the time during each performance year of the contract year (Feb to Feb), in accordance with the requirements of the SOW.	Periodic reports and validated user/customer complaints and observations	95% of callers per month	(1) Negative impact on past performance rating; possible termination
Help Desk Support	Each caller will provide first-level e-mail based customer service to his problem within one business day of receipt of the e-mail. This e-mail will address the problem reported by the user in accordance with the requirements of the SOW.	Periodic reports and validated user/customer complaints	95% of e-mails per month	(1) Negative impact on past performance rating; possible termination

Attachment 4 – Quality Assurance Surveillance Plan

11. Monitoring Forms

Attachment 4 – Quality Assurance Surveillance Plan

The government's QA surveillance, accomplished by the COR, will be reported using the monitoring form in Attachment 1. The forms, when completed, will document the government's assessment of the Contractor's performance under the contract to ensure that the required results are being achieved. The COR will retain a copy of all completed QA surveillance forms.

12. Analysis of Quality Assurance Assessment

12.1 Determining Performance

Government shall use the monitoring methods cited in the PRS Matrix to determine whether performance standards/AQLs have been met. If the Contractor has not met the minimum requirements, he may be asked to develop a corrective action plan to show how and by what date it intends to bring performance up to the required levels. Failure to meet the AQL may result in termination, a negative performance rating or both.

12.2 Reporting

Performance will be monitored in 2 phases. The first phase will commence on January 1st and end on April 30th and the second phase will begin on May 1st and end on December 31st. The COR will prepare 4 written reports annually for the CO summarizing the results of the quality assurance surveillance of the Contractor's performance. The first report will be due at the end of the 1st monitoring phase on April 30th and for the remaining reports will be due on July 30th, September 30th and December 31st respectively. These written reports, which will include the completed quality assurance monitoring form, will become part of the QA documentation. It will enable the government to assess whether the Contractor is meeting the stated objectives and/or performance standards.

12.3 Implementation

The IRS shall make progress payments for the software purchased for the upcoming tax season commencing on January 1st of each contract until. After the Contractor's software has been delivered; contract payments will be based on performance assessment. If the Contractor fails to meet any of the requirements under the established performance standards, the Contractor's past performance will be negatively affected in the interim reporting. During Phase 2 of the monitoring period, the Contractor's performance will be assessed on the dates indicated in Section 12.2 to determine the Contractor's past performance rating. Any negative performance information resulting from the performance assessment will be reported in the Contractor Performance Assessment and Reporting System (CPARS). Further any performance issues documented under Phase 1 or that result from the Contractor's inability to fulfill any of the terms or conditions of the contract that are not included in the PRS Matrix may also be reported in CPARS.

12.4. Reviews and Resolution

The IRS may require the Contractor's project manager, or a designated alternate, to meet with the team members identified in Section 4 to discuss the performance evaluation. The meetings may be scheduled at regular intervals or on an "as needed" basis only or at the request of the Contractor. These meetings will mainly consist of performance reviews. The agenda may include:

- Performance assessment data and trend analysis
- Issues and concerns of both parties
- Projected outlook for upcoming months and progress against expected ends, including a corrective action plan analysis
- Recommendations for improved efficiency and/or effectiveness
- Issues arising from the performance monitoring process

The team must coordinate and communicate with the Contractor to resolve issues and concerns regarding marginal or unacceptable performance. The team and the Contractor should jointly formulate tactical and long-term courses of action to improve performance. Any changes to the QASP that result from these meetings must be incorporated through the issuance of a modification to the contract.

QUALITY ASSURANCE MONITORING FORM

SERVICE or STANDARD: _____

MONITORING PERIOD: _____

SURVEILLANCE METHOD (Check):

☐ COR Monitoring ☐ Inspection ☐ Testing ☐ Random Sampling ☐ Report ☐ User/Customer
Observations/Complaints

LEVEL OF SURVEILLANCE (Check):

☐ Weekly ☐ Monthly ☐ Quarterly ☐ As needed

CRITERIA/DOCUMENTATION USED FOR SAMPLING: _____

ANALYSIS OF RESULTS:

Contractor's Performance Measurement: _____ %

Contractor's Performance (Check):

☐ Meets Standards

☐ Does Not Meet Standards

Number of Performance During Survey Period: _____

PREPARED BY: _____ **DATE:** _____

Term	Definition
AARP	American Association of Retired Persons
Administrator	The admin user has control over other users, such as adding, deleting, or modifying user capabilities. The admin has all the user capabilities except the ability to create a return.
AGI	Adjusted Gross Income
COE	Common Operating Environment
Contractor / Vendor / Offeror	The party providing software and operational support services to the IRS.
COR	Contracting Officer's Representative
CSIRC	Computer Security Incident Response Center
Professional Desktop Version	Vendor provided software package that allows a volunteer to prepare a taxpayer's return without an internet connection.
DTAR	Department of Treasury Acquisition Regulation
Deployment Metrics Report for Ordering and Shipping	Report contains the following information: Order was shipped, Destination name and address, Order number or Registration Number (9-digit alpha and numeric), Delivery date and time, Type of Program (i.e. VITA, VITA Military, TCE, or TCE Military), Registration code (if applicable), Confirmation code, call number and tracking number.
E-File Manager	A person responsible for submitting returns electronically, reviewing acknowledgements and researching returns.
EFIN	Electronic Filing Registration Number
EFT	Electronic Funds Transfer
 EIN	Employer Identification Number
EITC	Earned Income Tax Credit
Facilitated Self Assistance	A return preparation method in which a taxpayer prepares his or her own return, however experts are available for assistance. A return prepared in this manner is considered a self-prepared return.
FAQ	Frequently Asked Questions
FAR	Federal Acquisition Regulation

Term	Definition
Field Assistant	An IRS representative on site at volunteer location to provide assistance with the software
Filing Season	The period from January 1st to April 15th following the tax year
FIPS	Federal Information Processing Standard
Form-Based Data Entry	The user of the software is presented with the tax forms provided by the revenue agency, and is able to enter figures on the forms and lines.
FTI	Federal Tax Information
Form 13614-C	Taxpayers use Form 13614-C, Intake Interview & Quality Review Sheet , to provide information for volunteers.
HSPD	Homeland Security Presidential Directive
Indirect Transmission	E-filed returns that are transmitted first to the software provider. The software provider then e-files the returns with the IRS.
Intake Site	A location designated to receive and screen taxpayer information before forwarding to a tax preparation site.
Interviewer	A person responsible for initial screening of taxpayers and review of their tax documents.
Interview-Based Data Entry	Interactive question and answer application that makes tax law explanations and automatically performs calculations based on responses to specific questions and uses this information to populate the appropriate tax forms resulting in a completed tax return. Questions are written in plain language and do not assume prior tax law knowledge.
IRC	Internal Revenue Code
IRM	Internal Revenue Manual
IRS	Internal Revenue Service Acquisition Procedure
ITIN	Individual Taxpayer Identification Number
Major Software Update	A software update which impacts the security of the software or the outcome of the return
Minor Software Update	A software update which is not a major software update
Multiple Refund Deposit	Total number of refunds deposited into a single bank account
NIST	National Institute of Standards and Technology
Post-Filing Season	The period from April 16th to October 31st following the tax year

Term	Definition
Partner / Licensee	An organization that has partnered with the IRS to provide volunteers to assist with tax preparation.
Plain Language	Plain language (also called Plain English) is communication your audience can understand the first time they read or hear it. Language that is plain to one set of readers may not be plain to others. Written material is in plain language if your audience can: • Find what they need; • Understand what they find; and • Use what they find to meet their needs.
POC	Point of contact
PTIN	Preparer Tax Identification Number
Return Preparation Site	A centralized location used to prepare tax returns received from an intake site.
Return Preparer	A person responsible for preparing tax returns.
Reviewer	A person, other than the individual that prepared the return, who checks the tax return to ensure accuracy and completeness. They also confirm it is ready for transmission of the return for corrective actions.
RFQ	Request for Quote
SBU	Sensitive but Unclassified
Section 508	Section 508 of the Rehabilitation Act of 1973
SIDN	A SIDN is a 9 character alphanumeric site identification number which starts with the letter “s.” It must be entered in the preparer box for the PTIN field.
Site Manager / Site Coordinator	Staff member at a volunteer site who has responsibility for the site as a whole.
Software	Unless otherwise specified, software refers generally to all software packages. • Self-Preparer Web based version • Professional Web-based Version • Professional Desktop Version
SP	Stakeholder Partnerships, Education and Communication
SSL	Secure Socket Layer
SSN	Social Security Number

Term	Definition
Super User	A person with the same capabilities of a return preparer, interviewer, reviewer, and e-file manager. They also have the ability to move returns between users.
TCE	Tax Counseling for the Elderly
Template Manager	A person responsible for creating return templates.
VITA	Volunteer Income Tax Assistance
Volunteer / Preparation Volunteer	Staff member at a volunteer site who prepares returns or assists taxpayers with self-prepared returns.
VPAT	Voluntary Product Accessibility Template
Professional Desktop Version	Vendor provided software package that allows a volunteer to prepare a taxpayer's return without an internet connection
Professional Web-based Version	Vendor provided software package that allows a volunteer to prepare a taxpayer's return on the internet, without installing any software locally
Self-Preparer Web-based Version	Vendor provided software package that allows a taxpayer to prepare his or her own return on the internet, without installing any software locally

SECTION III - CONTRACT CLAUSES

Clauses Incorporated by Reference:

52.202-1 Definitions (Jun 2020)

52.203-3 Gratuities (Apr 1984)

52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

52.204-10 Reporting Executive Compensation and First-Source Subcontract Awards (Oct 2025)

52.204-13 System for Award Management-Performance (Oct 2025)

52.204-14 Service Contract Reporting Requirements (Oct 2025)

52.204-19 Incorporation by Reference of Representations and Certifications (Dec 2014)

52.208-9 Contractor Use of Mandatory Sources of Supply or Services (Oct 2025)

52.209-10 Prohibition on Contracting with Unvetted Domestic Corporations (Oct 2025)

52.219-16 Liquidated Damages-Subcontracting Plan (Oct 2025)

52.222-3 Contractor Labor (Oct 2025)

52.222-50 Combating Trafficking in Persons (Oct 2025)

52.224-1 Privacy Act Notification (Apr 1984)

52.224-2 Privacy Act (Apr 1984)

52.229-3 Federal, State, and Local Taxes (Oct 2025)

52.232-23 Assignment of Claims (May 2014)

52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)

52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

52.233-1 Disputes (Oct 2025)

52.233-3 Protest after Award (Oct 2025)

52.233-4 Applicable Law for Breach of Contract Claim (Oct 2025)

52.243-1 Changes-Fixed Price (Oct 2025) Alternate I (Oct 2025)

1052.210-70 Contractor Publicity (Apr 2015)

1052.219-75 Mentor Requirements and Evaluation (Aug 2011)

Full Text Clauses:

52.217-8 Option to Extend Services (Nov 2001)

The Government may require continued performance of services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing rates as provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of Clause)

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of Clause)

52.219-10 Incentive Subcontracting Program (Oct 2025)

(a) Of the total dollars it plans to spend under subcontracts, the Contractor has committed itself in its subcontracting plan to try to award certain percentages to small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns, respectively.

(b) If the Contractor exceeds its subcontracting goals for small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in performing this contract, it will receive _____ *Contracting Officer to insert the appropriate number between 0 and 10* percent of the dollars in excess of each goal in the plan, unless the Contracting Officer determines that the excess was not due to the Contractor's effort (e.g., subcontractor cost overrun caused the actual subcontract amount to exceed the estimated in the subcontracting plan, or the award of subcontracts that had been planned but had not been disclosed in the subcontracting plan during contract negotiations). Determinations under this paragraph are unilateral decisions made solely at the discretion of the Government.

(c) If this is a cost-plus-fixed-fee contract, the sum of the fixed fee and the incentive fee earned under this contract may not exceed the limitations in 15.4 of the Federal Acquisition Regulation.

(End of Clause)

1052.201-70 Contracting Officer's Representative (COR) Appointment and Authority (Apr 2015)

(a) The COR is _____ [insert name, address and telephone number].

(b) Performance of work under this contract is subject to the technical direction of the COR identified above, or a representative designated in writing. The "technical direction" includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the work statement are accomplished satisfactorily.

(c) Technical direction must be within the scope of the contract specification(s)/work statement. The COR does not have authority to issue technical direction that:

(1) Constitutes a change of assignment or additional work outside the contract specification(s)/work statement;

(2) Constitutes a change as defined in the clause entitled "Change";

(3) In any manner causes an increase or decrease in the contract price, or the time required for contract performance;

(4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;

(5) Interferes with the contractor's right to perform under the terms and conditions of the contract; or

(6) Directs, supervises or otherwise controls the actions of the Contractor's employees.

(d) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(e) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the Contractor, any direction of the COR or a designated representative falls within the limitations of (c) above, the Contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

(f) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the clause entitled "Disputes."

(End of Clause)

IRS Specialized Information Technology (IT) Security Training (Role-Based) Requirements (Apr 2024)

(a) Consistent with the Federal Information Security Modernization Act of 2014 (FISMA), specialized information technology (IT) security training (role-based) shall be completed prior to access to Information Systems and annually thereafter by contractor and subcontractor personnel who have an IT security role or responsibility.

(b) Identifying contractor/subcontractor personnel responsible for IT security is completed by the Contractor, and verified by the Contracting Officer completing the Risk Assessment Checklist (RAC). The roles listed in the RAC conform to those roles listed in the Internal Revenue Manual 10.8.1.3 that apply to contractor personnel. This process applies to new contractors/subcontractors, replacement personnel and for existing contractors/subcontractors whose roles change during their work on a contract. This includes, but is not limited to, granting an approved elevated privilege to one or more IRS systems through the Business Enterprise System Access Request System (BEARS).

(c) Prior to accessing an IT system, all contractor/subcontractor personnel must successfully complete all provisions of IR1052.204-9000 Submission of Security Forms and Related Materials.

(d) In keeping with the Security Orientation outlined in IR1052.224-9001, contractor/subcontractors designated on the Risk Assessment Checklist as performing staff-like access shall complete approved training equal to the assigned hours within 5 business days of receiving the Personnel Security's memo approving staff-like access.

(e) Annual Requirements: Thereafter, on an annual basis within a FISMA year cycle beginning July 1st of each year, contractor/subcontractor personnel performing under this contract in the role identified herein is required to complete specialized IT security, role-based training by June 1st of the following year.

(f) Training Certificate/Notice: The contractor shall use the Government system identified by Cybersecurity to annually complete specialized IT security training (role-based). The COR will track the courses, hours completed and the adhere to the established due dates for each contractor/subcontractor personnel. Alternatively, courses may be completed outside of the Government system. Any courses taken outside of the Government system must be pre-approved by IRS Cybersecurity's FISMA Training Compliance team via the COR. Adequate information such as course name/syllabus must be provided for evaluation. Once a course is approved, certificates of completion provided for each contractor/subcontractor shall be provided to COR in order to receive credit toward the required hours for the contractor/subcontractor personnel. Copies of completion certificates for externally completed courses must be shared with the Contracting Officer upon request.

(g) Administrative Remedies: A contractor/subcontractor who fails to complete the specialized IT security training (role-based) requirement within the timeframe specified, may be subject to suspension, revocation, or termination (temporarily or permanently) of staff-like access to IRS IT systems.

(h) Flow down of clauses. The contractor shall incorporate and flow down, in its subcontracts (or arrangements or outsourced service agreements) that provide staff-like access to SBU information by a subcontractor, at any time, the Federal Acquisition Regulation (FAR) and local security guard clause provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

(End of Clause)

Organizational Conflicts of Interest (May 2018)

(a) Purpose: The purpose of this clause is (1) to ensure that the contractor is not biased because of conflicting roles in financial, contractual, organizational, or other interests which may affect the work to be performed under this contract, and (2) to ensure the contractor does not obtain any unfair competitive advantage over other parties as a result of its work under this contract.

(b) Scope: The restrictions described herein shall apply to performance or participation by the contractor and any of its affiliates or their successors in interest (hereinafter

collectively referred to as the "contractor") in any activities related to this contract. The term contractor includes the prime contractor, subcontractors, mentors, joint ventures, consultants, or any others acting in a similar capacity.

(c) Reporting: The contractor shall immediately report to the CO any conflict or potential conflicts that arise during the performance of work under this contract, including those that may surface at the subcontract level. Once reported, the CO may terminate the contract for convenience if such an action is in the best interest of the Government. However, should there be any misrepresentation of facts in reporting an OCI or a potential OCI, at the prime or subcontract level, or a complete failure to report such, the CO may impose the remedies provided in subparagraph (f) of this clause.

(d) Restrictions: (The CO shall list appropriate restrictions for the particular acquisition. Listed below are three sample restrictions.)

(1) The contractor shall not be eligible to participate in Internal Revenue Service contracts, subcontracts, or proposals which stem directly from the contractor's performance of work under this contract, for a period of years after the completion of this contract.

(2) The contractor shall not perform any advisory or assistance services work under this contract for a period of years unless directed to do so by the CO, if the contractor has been or is substantially involved in the developing or marketing of its products or services or the products or services of another firm.

(3) If, under this contract, the contractor prepares a statement of work or specifications to be used in competitive acquisitions, the contractor shall be ineligible to perform or participate, in any capacity, in any acquisition which is based on said statement of work or specifications for a period of years.

(e) Subcontracts: This contract shall include a clause, substantially similar to this clause, including this subparagraph, in all subcontracts (including purchase/delivery orders), licensing arrangements and/or other agreements calling for the performance of work related to this contract unless exempted in writing by the CO.

(f) Remedies: Breach of any of the above restrictions or for nondisclosure or misrepresentation of any facts required to be disclosed concerning this contract, including the existence of an actual or potential organizational conflict at the time of or after award, the IRS may terminate the contract for default, disqualify the contractor from subsequent related efforts, and pursue such other administrative remedies as may be permitted by law or other terms and conditions of this contract.

(End of Clause)

1052.224-70 Contract Publication (Oct 2018)

(a) The Department of the Treasury (Treasury) may, at its sole discretion, publish this contract or portions thereof, including orders issued under the contract when deemed in the best interest of the Government.

(b) To afford the Contractor an opportunity to review and propose redactions for any information contained in the Treasury contract that may be subject to a FOIA exemption, the Contractor may submit, within ten business days from the date of award of this contract or any order issued under the contract —

(1) A pdf file of the fully executed contract order that is suitable for publication and which includes all Contractor proposed redactions (e.g., trade secrets or any commercial or financial information that the Contractor believes is privileged or confidential business information) and.

(2) A written statement identifying the portions of each proposed redactions, including the applicable exemption under the Freedom of Information Act (FOIA), 5 U.S.C. 552, and, in the case of FOIA Exemption 4, 5 U.S.C. 552(b)(4), shall demonstrate why the information is considered to be a trade secret or commercial or financial information that is privileged or confidential.

(c) Treasury will consider the Contractor's proposed redactions and associated grounds for nondisclosure prior to making a determination as to what information may be properly withheld for purposes of publishing this contract or portions thereof.

(d) The Contractor may submit a request to the CO for additional time to complete the action prescribed by paragraph (b) of this clause. The lack of action by the Contractor will be deemed by the Government as there being no information in the Treasury contract subject to a FOIA exemption.

(e) Information provided by the Contractor in response to this clause may itself be subject to disclosure under the FOIA.

(End of Clause)

Safeguards Against Unauthorized Disclosure of Sensitive But Unclassified Information (Apr 2024)

1. Treasury Directive Publication 15-71 (TD P 15-71), Chapter III – Information Security, Section 24 – Sensitive But Unclassified Information defines SBU information as any information, the loss, misuse, or unauthorized access to or modification of which could adversely affect the national interest or the conduct of Federal programs, or the privacy to which individuals are entitled under Section 552a, Title 5, United States Code (U.S.C.) (the Privacy Act) but which has not been specifically authorized under criteria established by an executive order or an act of Congress to be kept secret in the interest of national defense or foreign policy.’ SBU may be categorized in one or more of the following groups—

- Federal Tax Information (FTI), including any information, or related to a tax return
- Returns and Return Information
- Sensitive Law Enforcement Information
- Employee and Personnel Information
- Personally Identifiable Information (PII)
- Information collected or created from surveys
- Other Protected Information

2. Tax return or tax return information disclosed to the contractor can be used only for a purpose and to the extent authorized herein, and willful disclosure of any such tax return or tax return information for a purpose and to the extent unauthorized for the provision of appraisal services to assist with the valuation of conservation easements constitutes a felony punishable upon conviction by a fine of as much as \$5,000 or imprisonment for as long as five (5) years, or both, together with the costs of prosecution. Any such knowing or negligent unauthorized disclosure of tax return or tax return information may also result in an award of civil damages in an amount not less than \$5,000 plus costs with respect to each instance of unauthorized disclosure. These penalties are prescribed by the Internal Revenue Code, Sections 7213 and 7431; see also 26 CFR § 301.7213-1(n)-1.

3. Contractors who perform work at contractor (including subcontractor) managed sites using contractor or subcontractor managed IT resources shall adhere to the general guidance and specific privacy and security control requirements contained in Publication

4812, Contractor Security & Privacy Controls, IRM 10.23.2 - Personnel Security, Contractor Investigations, IRM 10.5.1 Privacy Policy, and IRM 10.8.1 - Information Technology (IT) Security, Policy and Guidance. Publication 4812 and IRM 10.5.1, 10.8.1 and 10.23.2 provide comprehensive lists of all security, privacy, information protection and disclosure controls and guidance.

4. Eligibility, Fitness and Suitability. Contractor (including subcontractor) personnel hired for work within the United States or its territories and possessions and who require staff-like access, wherever the location, to IRS-owned or controlled facilities or work on contracts that involve the design, operation, repair, or maintenance of information systems, and/or require staff-like access to SBU information, must meet the eligibility requirements under IRM 10.23.2, Personnel Security, Contractor Investigations, and shall be subject to security screening and investigative processing, commensurate with the position sensitivity level, and in accordance with IRM 10.23.2, TD P 15-71. Contractor (including subcontractor) personnel must be both eligible and suitable, and approved for staff-like access (interim or final) by IRS Personnel Security prior to starting work on the contract order, and before being granted access to IRS information systems or SBU information.

5. General Conditions for Allowed Disclosure. Any information, in any format, made available to or created by the contractor (including subcontractor) personnel shall be treated as confidential information and shall be used only for the purposes of carrying out the requirements for this contract. Inspection by or disclosure to anyone other than duly authorized officer or personnel of the contractor (including subcontractor) shall require prior written approval by the IRS. Requests to make such inspections or disclosures shall be addressed to the IRS. Access to SBU information shall be provided on a "need to know" basis. SBU information shall never be indiscriminately disseminated, and no person shall be given access to (or allowed to retain) more SBU information than is needed for performance of their duties, and for which that individual has been authorized to receive as a result of having been successfully investigated, adjudicated, trained to receive, and what is strictly necessary to accomplish the intended business purpose and mission.

6. Nondisclosure Agreement. Consistent with TD P 15-71, Chapter II, Section 2, and IRM 10.23.2, TD P 15-71 - Nondisclosure Agreement for Sensitive but Unclassified Information, each contractor (including subcontractor) personnel who requires staff-like access to SBU information shall complete, sign, and submit to Personnel Security – through the CO (or COR, if assigned) — an approved Nondisclosure Agreement prior to being granted staff-like access to SBU information under any IRS contract or order.

7. Training. All Contractor personnel assigned to this contract with staff-like access to SBU information must complete IRS-provided privacy and security awareness training, including the Privacy, Information Protection, and Disclosure training, as outlined in IR1052.224-9001 Mandatory IRS Security Training for Information Systems, Information Protection and Facilities Physical Access. Contractor personnel required to take the Unauthorized Access to Taxpayer Data training must attest to understanding the penalties for unauthorized access, as instructed by the COR.

8. Encryption. All SBU information must be protected at rest, in transit, and in exchanges (i.e., internal and external communications). The contractor (including subcontractors) shall employ encryption methods and tools to ensure the confidentiality, integrity, and availability of SBU information.

9. Particularly relevant to this clause are the updated sections to IRM 10.8.1 and Publication 4812 regarding email and text messages, alternate work sites, and incident management:

- For email and text messaging, the contractor shall abide by IRM 10.8.1.4.17.2.2 "Electronic Mail (Email) Security," IRM 10.8.2.2.1.18 "Email" plus all subsections, and IRM 10.8.2.2.1.18 "Contractor"; or Pub. 4812 section 21.1 "Electronic Mail (Email) Security,". Included are requirements on encryption, subject line content, and restrictions on personal email accounts.
- For alternate work sites, the contractor shall abide by IRM 10.8.1.4.11.16 "PE-17 Alternate Work Site" or Publication 4812 section 21.16 "PE-17 Alternate Work Site,". Included are requirements for incident reporting, encryption, and secure access.

10. Incident and Situation Reporting. Contractors and subcontractors are required to report a suspected or confirmed breach in any medium or form, electronically, verbally, or in hardcopy form immediately upon discovery. All incidents related to IRS processing, information or information systems shall be reported immediately upon discovery to the COR, and CSIRC. Contact the CSIRC through any of the following methods:

CSIRC contacts:
Telephone: 202-313.3606
E-mail to csirc@irs.gov

In addition, if the SBU information is or involves a loss or theft of an IRS IT asset, e.g., computer, laptop, router, printer, removable media (CD/DVD, flash drive, floppy, etc.), or non-IRS IT asset (BYOD device), or a loss or theft of hardcopy records/documents

containing SBU data, including PII and tax information, the contractor shall report the incident/situation to the Treasury Inspector General for Tax Administration (TIGTA) hotline at (800) 366-4484.

11. Staff-Like Access to, Processing and Storage of Sensitive but Unclassified (SBU) Information. The contractor (including subcontractor) shall not allow contractor or subcontractor personnel to access, process, or store SBU on Information Technology (IT) systems or assets located outside the continental United States and its outlying territories.

Contractors (including subcontractors) utilizing their own systems or assets to receive or handle IRS SBU data shall not commingle IRS and non-IRS data.

12. Disposition of SBU Information. All SBU information processed during the performance of this contract, or to which the contractor (or subcontractor) was given staff-like access (as well as all related output, deliverables, secondary or incidental by-products, information or data generated by the contractor and others directly or indirectly from the source material), regardless of its format, shall be completely purged from all data storage components of the contractor's and subcontractor's facilities and computer systems, and no SBU/Personally Identifiable Information or other information will be retained by the contractor either--

- When it has served its useful, contractual purpose, and is no longer needed to meet the contractor's (including subcontractor) other, continuing contractual obligations to the IRS or
- When the contract is terminated by the IRS (for convenience, default, or cause).

The contractor (including subcontractor) shall completely purge from its systems and any other storage all SBU data including PII and tax information (originals, copies, and derivative works) within 30 days of the point at which it has served its useful contractual purpose, or the contract expires or is terminated by the IRS (unless, the CO determines, and establishes, in writing, a longer period to complete the disposition of SBU data including PII and tax information).

The contractor shall provide to the IRS a written and signed certification to the COR that all SBU materials/information (i.e., case files, receipt books, PII and material, tax information, removable media (disks, CDs, thumb drives)) collected by, or provided to, the contractor have been purged, destroyed, or returned.

13. Records Management.

A. Applicability

This language applies to all Contractors whose personnel create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists. Contractor/subcontractor personnel are bound by the Records Management by Federal Agencies (44 U.S.C. Chapter 31) regarding the care and retention of federal records.

B. Definitions

"Federal record" as defined in 44 U.S.C. § 3301, includes recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

1. includes [Agency] records;
2. does not include personal materials;
3. applies to records created, received, or maintained by Contractors pursuant to their [Agency] contract; and
4. may include deliverables and documentation associated with deliverables.

C. Requirements

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chapters 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Contractors shall ensure that all IRS data and IRS-derived data are in commercially available or open and non-proprietary format for transition back to IRS) in accordance with the National Archives and Records Administration (NARA) disposition guidance.

4. IRS and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of IRS or destroyed except for in accordance with the provisions of IRM 1.15.5, Relocating/Removing Records, the agency records schedules and with written concurrence of the CO. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, damage, or destruction of records, Contractor must immediately notify the appropriate CO. The CO must report the loss using the PII Breach Reporting Form, Privacy, Governmental Liaison and Disclosure (PGLD, Incident Management) will follow the PII Breach Reporting Form and alert the Records and Information Management (RIM) Program Office that a suspected records loss has occurred. The agency must report to NARA in accordance with 36 CFR 1230.

5. The Contractor shall immediately notify the appropriate CO immediately upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to IRS control or the Contractor must retain it until otherwise directed. Items returned to the Government shall be hand-carried, mailed, or securely electronically transmitted to the CO or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

6. The Contractor is required to obtain the approval of the CO prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and [Agency] guidance for protecting sensitive, proprietary information, and controlled unclassified information.

7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with IRS policy.

8. The Contractor shall not create or maintain any records containing any non-public IRS information that are not specifically tied to or authorized by the contract.

9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974, Internal Revenue Code section 6103, or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

10. IRS owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the Government for which IRS shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. All Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.

11. Training. All Contractor personnel assigned to this contract who create, work with, or otherwise handle records are required to take IRS-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

D. Flow down of requirements for subcontractors

The Contractor shall incorporate the substance of this language, its terms, and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.

2. Violation by a subcontractor of any provision set forth in this language will be attributed to the Contractor.

3. Other Safeguards. [Insert any additional disclosure safeguards provided by the Program Office/COR or that the CO determines are necessary and in the best interest of

the Government and not addressed elsewhere in the contract. If none are entered here, there are no other safeguards applicable to this contract action.]

(End of Clause)

Mandatory IRS Security Training for Information Systems Information Protection and Facilities Physical Access (Apr 2024)

The Federal Information Security Modernization Act of 2014 (FISMA) requires each federal agency to provide periodic information security and privacy awareness training to all contractors/subcontractors involved in the management, use, or operation of Federal information and information systems. In addition, contractor/subcontractor personnel are subject to the Taxpayer Browsing Protection Act of 1997, which prohibits willful unauthorized inspection of returns and return information and details that any violation of the Act could result in civil and criminal penalties. Contractor/subcontractor personnel are bound by the Records Management Regulations (44 U.S.C. Chapter 31) regarding the care and retention of Federal records.

1. The contractor must ensure new contractor/subcontractor personnel complete all assigned briefings which are based on the responses provided on the Risk Assessment Checklist Form 1606. These responses pertain to access to any IRS system, including basic LAN, email, and internet; access to any Sensitive but Unclassified (SBU) data; and access to any IRS system. Since new contractor/subcontractor personnel will not have access to the IRS training system, the COR shall provide softcopy versions of each briefing.

i. Exception: Contractor personnel (including subcontractors) performing under IRS contracts with Non-Profit Agencies Employing People Who Are Blind or Severely Disabled (as described in FAR Subpart 8.7) are exempted from the aforementioned briefing requirement unless the contractor requests access to the training, or there is a compelling justification for requiring the training that is approved by the Contracting Officer. An example of this would be in an instance where visually impaired personnel are assigned to perform systems development and has potential staff-like access to IRS information.

ii. Contractor/subcontractor personnel working with IRS information at contractor-controlled facilities with no access to the IRS network will be subject to all mandatory

briefing excepting the Facilities Management Physical Security briefing as outlined in Publication 4812.

iii. Service Personnel: Inadvertent Sensitive Information Access Training

Contractor personnel performing: (i) janitorial and cleaning services (daylight operations), (ii) building maintenance, or (iii) other maintenance and repair and need staff-like access to IRS facilities are required to complete Inadvertent Access to Sensitive Information (SBU) Access training.

iv. Service Personnel Security Awareness Training: Contractor personnel providing services in the following categories are required to complete FMSS Physical Security Training:

- Medical;
- Cafeteria;
- Landscaping;
- Janitorial and cleaning (daylight operations);
- Building maintenance; or
- Other maintenance and repair

2. In combination these mandatory briefings are known as IRS Security Awareness Training (SAT). The topics covered are: Cybersecurity Awareness, Privacy Information Protection and Disclosure, Unauthorized Access to Taxpayer Data, Records Management, Inadvertent Sensitive Information Access, and/or Facilities Physical Security. The completion of all mandatory briefings constitutes the completion of the security orientation.

3. Training must be completed by contractor/subcontractor personnel within 10 business days of successful resolution of the suitability and eligibility for staff-like access as outlined in IRM 204-900, Submission of Security Forms and Related Materials and before being granted access to SBU data. The date listed on the memo provided by IRS Personnel Security shall be used as the commencement date.

4. Training completion process:

The contractor must submit confirmation of completed SAT mandatory briefings for each contractor/subcontractor personnel by either:

i. Using Form 14616 signed and dated by the individual and authorized contractor management entity and returned to the COR. This option is used for new contractor/subcontractor personnel and any that do not have an IRS network account.

ii. Using the IRS training system which is available to all contractors with IRS network accounts

5. Annual Training. For contracts/orders/agreement exceeding one year in length, either on a multiyear or multiple year basis, the contractor must ensure that personnel complete assigned SAT mandatory briefings annually no later than October 31st of the current calendar year. The contractor must submit confirmation of completed annual SAT on all personnel unable to complete the briefings in the IRS training systems by submitting completed Form 14616 assigned to this contract/order/agreement via email, to the COR, upon completion.

6. Contractor's failure to comply with IRS security policy (to include completion and certification of SAT requirements within the timeframe specified) may be subject to suspension, revocation, or termination (temporarily or permanently) of staff-like access to IRS IT systems and facilities.

7. Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced services agreements) that entail staff-like access to SBU information by a subcontractor, at any tier, the substantially same Federal Acquisition Regulation (FAR) and local security or safeguard clauses and provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

(End of Clause)

Electronic Invoicing and Payment Requirements for the Invoice Processing Platform (IPP) (July 2019)

(a) Definitions:

"Short payment" as used in this clause means the partial payment of an invoice for goods/services actually rendered at the time of payment when the invoice includes additional goods/services that have not yet been provided/rendered.

"Short payment" example: The contract requires the delivery of a set number of items, with the price, delivery location, and delivery due date also specified. The vendor delivers 50% of the items as specified but invoices for 100% of the items. Before

implementation of the IPP, the IRS would have paid the vendor for the items delivered and instructed the vendor to re-invoice the IRS when the balances of the items were delivered. In other words, the IRS would "short pay" the invoice since the IRS did not remit payment for the full invoice amount. With implementation of the IPP, the IRS can no longer do this because the IRS cannot accept an electronic invoice that includes items not yet received. The IRS will reject the invoice. The vendor needs to submit an invoice for only the items received by the IRS (in this case, 50%), and once these items meet all other contract terms and conditions, the IRS will pay the invoice amount. The vendor submits subsequent invoice(s) for items as they are delivered and accepted.

(b) The Invoice Processing Platform (IPP) is a secure Web-based electronic invoicing and payment information service available to all Federal agencies and their suppliers. Effective October 1, 2012, invoicing for payment through the IPP will be mandatory for all new contract awards. Additional information regarding the IPP may be found at the IPP website address <https://www.ipp.gov>. Contractors must complete the contractor point of contact information below and submit it with their proposal submissions. Contractors may contact the IPP Helpdesk for assistance via email at ippgroup@stls.frb.org or via phone at (669) 813-1311. Once a contract award has been made, the contractor will be contacted by the IPP Helpdesk via email to set up an account. It will be necessary for contractors to login to their IPP account within 90 days to keep their IPP accounts active.

(c) Contractor Point of Contact Information

Contractor Name: _____

Contractor IPP Point of Contact: _____

Contractor Phone Number: _____

Contractor Email Address: _____

(d) Electronic Invoicing and Payment Requirements

Vendor invoices submitted electronically through the IPP should be in the proper format and contain the information required for payment processing. To be approved for payment, a "proper invoice" must list the items specified in FAR 52.232-25 (a)(3)(i) through (3)(v) or in the case of a Commercial Item Contract, the items included in 52.212-4(g)(1)(i) through (g)(1)(x).

If the vendor is offering a discount via the IPP, the discount must be reflected on the invoice. The vendor will select 'Create Invoice'. The IPP system will default to 'Net 30 Prompt Pay' under the Payment Terms dropdown box. The vendor will select from 54

different discount options for the invoice that is being created. If the vendor chooses to offer a discount on the invoice screen, the information will interface to the payment system for processing. Discounts that are offered on attachments rather than the invoice itself cannot be accepted.

Under this contract, the following documents are required to be submitted as an attachment to the invoice (Contracting Officer fills in additional documentation that must be furnished by the contractor (e.g. timesheet)). Please do not submit to IPP any documentation/attachments that conflict with what is stated on the invoice:

Payment and Invoice Questions

For payment and invoice questions, contact the Andromeda Systems at (304) 254-3372 or via e-mail at cfo.fm.ipp.customer.support@irs.gov.

(e) Waiver

If the Contractor is unable to use the IPP for submitting payment requests starting on October 1, 2012, then a waiver form must be completed and submitted with the contractor's proposal submission for review and approval by the Contracting Officer based on one of the conditions listed in the waiver. The vendor will be notified prior to award as to whether their request for waiver has been approved or denied. If the waiver is granted, the copy of the waiver must be submitted with each paper invoice that the vendor submits to the payment system or the invoice will be returned.

(f) Short Payment

Short payment: Vendor submitted invoices will no longer be processed or paid. If any portion of the invoice does not meet the requirements for a proper invoice, the entire invoice shall be rejected and returned to the vendor unpaid.

Invoice Processing Platform (IPP) Waiver Form

The IPP invoicing and payment requirements clause (IR1052.232-9000) requires that all invoices for awards made (or effective) on or after October 1, 2012, be submitted electronically via the IPP unless a waiver is requested and granted. If the Contractor is unable to submit its invoice through the IPP, the Contractor shall complete this waiver form indicating the reason for the waiver request by selecting the appropriate box below and providing a narrative summarizing in detail the circumstances requiring a

waiver. For a solicitation, submit the waiver form with the proposal submission. For a modification that incorporates the IPP clause into an existing contract, submit the waiver form with the modification. The CO will notify the vendor via e-mail or another appropriate means of communication prior to award as to whether their waiver has been approved or denied. If the waiver is granted, then a copy of the approved waiver must be submitted with each invoice that the vendor submits to the payment office or the invoice will be returned.

Reason for requesting a waiver of the requirement to submit an electronic invoice via the IPP:

☐ 1. Submission of invoices through IPP would impose a hardship on an individual (includes employees and sole proprietors) due to either a physical or mental disability; a geographic, language, or literacy barrier; or an undue financial burden. The requirement to submit invoices through the IPP is automatically waived for all individuals who do not have payment capability using ACH with a U.S. financial institution.

☐ 2. The political, financial or communications infrastructure where the place of business is located does not support access to the IPP for submitting invoices electronically.

☐ 3. The contractor is located within an area designated by the President of the United States or an authorized agency administration as a disaster area. (Please identify area/location.)

☐ 4. The submission of invoices electronically may pose a threat to national security, the life or physical safety of an individual may be endangered, or a law enforcement action may be compromised.

☐ 5. The agency does not expect to receive more than one invoice from the same contractor within a 12-month period. i.e., the invoice submission is non-recurring.

☐ 6. The contractor currently submits a high volume of invoices on a regular basis via file format, not currently supported by the IPP (i.e., uses a file format other than XML or CSV) and the high volume of invoices would cause a significant burden to the contractor if submitted through the IPP individually. If utilizing this exception, please identify the file formats supported by your invoicing system so that the IPP may consider implementing the requested file format at a later date. File format(s) used: _____

☐ 7. Other - Please explain: _____

Attach a separate sheet of paper with a summary narrative substantiating the circumstances for the waiver exception selected from above (1 through 7).

Waiver Submitted By:

Contractor Name

Name of Person Submitting Request for Waiver

Title

Signature of Person Submitting Request for Waiver

E-mail Address

Phone Number

Contract/Order Number

Date Submitted

Waiver Approved By:

Contracting Officer's Name (Printed)

Contracting Officer's Signature

Date

(End of Clause)

Section 508 Information, Documentation and Support (Dec 2019)

In accordance with 36 CFR, Appendix C to Part 1194, the [information and communication technology \(ICT\)](#) products and product support services documentation furnished in performance of this contract shall be provided at no additional cost. The contractor shall provide information, documentation, and support relative to the supplies and services as described in the statement of work, performance work statement or statement of objectives (select one). The following technical standards and provisions have been determined to be applicable to this contract:

- ☐ Chapter 6: Support Documentation and Services
- ☐ 601 General
- ☐ 601.1
- ☐ 602 Support Documentation
- ☐ 602.1 ☐ 602.2 ☐ 602.3 ☐ 602.4
- ☐ 603 Support Services
- ☐ 603.1 ☐ 603.2 ☐ 603.3

(End of clause)

Section 508 Services (Apr 2024)

All purchase orders, purchase orders, delivery orders and interagency agreements shall contain a requirement of services which will result in the delivery of a new or updated [information and communication technology \(ICT\)](#) item/product must conform to the applicable provisions of the appropriate technical standards in 36 CFR, Appendix C to Part 1194, and functional performance criteria in 36 CFR Chapter 3, unless an agency exception to this requirement exists at [E202 General Exceptions](#).

The following technical standards and provisions have been determined to be applicable to this contract:

- ☐ Chapter 4: Hardware
- ☐ 401 General
- ☐ 401.1

___	402 Closed Functionality
___	402.1 ___ 402.2(1-6) ___ 402.3 ___ 402.4 ___ 402.5
___	403 Biometrics
___	403.1
___	404 Preservation of Information Provided for Accessibility
___	404.1
___	405 Privacy
___	405.1
___	406 Standard Connections
___	406.1
___	407 Operable Parts
___	407.1 ___ 407.2 ___ 407.3 ___ 407.4 ___ 407.5 ___ 407.6 ___ 407.7 ___ 407.8
___	408 Display Screens
___	408.1 ___ 408.2 ___ 408.3
___	409 Status Indicators
___	409.1
___	410 Color Coding
___	410.1
___	411 Audible Signals
___	411.1
___	412 ICT with Two-Way Communication
___	412.1 ___ 412.2 ___ 412.3 ___ 412.4 ___ 412.5 ___ 412.6 ___ 412.7 ___ 412.8
___	413 Closed Captioning Process Technologies
___	413.1
___	414 Audio Description Process Technologies
___	414.1
___	415 User Control of Captions and Audio Descriptions
___	Chapter 5: Software
___	501 General
___	501.1
___	502 Interoperability with Assistive Technology
___	502.1 ___ 502.2 ___ 502.3 ___ 502.4(A-G)
___	503 Applications
___	503.1 ___ 503.2 ___ 503.3 ___ 503.4
___	504 Authoring Tools
___	504.1 ___ 504.2 ___ 504.3 ___ 504.4
___	Chapter 7: Referenced Standards
___	701 General
___	701.1

___ 702 Incorporation by Reference

___ 702.1 ___ 702.2 ___ 702.3 ___ 702.4 ___ 702.5 ___ 702.6 ___ 702.7 ___ 702.8 ___ 702.9 ___
702.10

The standards do not require the installation of specific accessibility-related software or the attachment of an assistive technology device, but merely require that the ICT be compatible with such software and devices so that it can be made accessible, if required by the agency in the future.

The following functional performance criteria (36 CFR Chapter 3) apply to this contract.

___ Chapter 3: Functional Performance Criteria

___ 301 General

___ 301.1

___ 302 Functional Performance Criteria

___ 302.1 ___ 302.2 ___ 302.3 ___ 302.4 ___ 302.5 ___ 302.6 ___ 302.7 ___ 302.8 ___ 302.9

(End of Clause)

Section 508 Accessibility of Information and Communication Technology (100% Compliance) (10/1/2024)

Each information and communication technology (ICT) product or service furnished under this contract must comply with the Information and Communication Technology Accessibility Standards (36 CFR, Appendix C to Part 1194). If the Contracting Officer determines any furnished products or services are not in compliance with the contract, the Contracting Officer will apply the remedies described under FAR 52.246-2, Inspection of Supplies – Fixed Price or FAR 52.246-4, Inspection of Services – Fixed Price.

The following technical standards and provisions have been determined to be applicable to this contract:

___ Chapter 4: Hardware

___ 401 General

___ 401.1

___ 402 Closed Functionality

___ 402.1 ___ 402.2(1-6) ___ 402.3 ___ 402.4 ___ 402.5

___	403 Biometrics
___	403.1
___	404 Preservation of Information Provided for Accessibility
___	404.1
___	405 Privacy
___	405.1
___	406 Standard Connections
___	406.1
___	407 Operable Parts
___	407.1 ___ 407.2 ___ 407.3 ___ 407.4 ___ 407.5 ___ 407.6 ___ 407.7 ___ 407.8
___	408 Display Screens
___	408.1 ___ 408.2 ___ 408.3
___	409 Status Indicators
___	409.1
___	410 Color Coding
___	410.1
___	411 Audible Signals
___	411.1
___	412 ICT with Two-Way Communication
___	412.1 ___ 412.2 ___ 412.3 ___ 412.4 ___ 412.5 ___ 412.6 ___ 412.7 ___ 412.8
___	413 Closed Caption Processing Technologies
___	413.1
___	414 Audio Description Processing Technologies
___	414.1
___	415 User Controls for Captioned Audio Descriptions
___	415.1
___	Chapter 5: Software
___	501 General
___	501.1
___	502 Interoperability with Assistive Technology
___	502.1 ___ 502.2 ___ 502.3 ___ 502.4(A-G)
___	503 Applications
___	503.1 ___ 503.2 ___ 503.3 ___ 503.4
___	504 Authoring Tools
___	504.1 ___ 504.2 ___ 504.3 ___ 504.4
___	Chapter 6: Referenced Standards
___	701 General
___	701.1
___	702 Incorporation by Reference

___ 702.1 ___ 702.2 ___ 702.3 ___ 702.4 ___ 702.5 ___ 702.6 ___ 702.7 ___ 702.8 ___ 702.9 ___
702.10

The standards do not require the installation of specific accessibility-related software or the attachment of an assistive technology device, but merely require that ICT be compatible with such software and devices so that it can be made accessible if so required by the agency in the future.

The following functional performance criteria (36 CFR Chapter 3) apply to this contract.

___ Chapter 3: Functional Performance Criteria

___ 301 General

___ 301.1

___ 302 Functional Performance Criteria

___ 302.1 ___ 302.2 ___ 302.3 ___ 302.4 ___ 302.5 ___ 302.6 ___ 302.7 ___ 302.8 ___ 302.9

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Staff-Like Access, Use, and Operation of IRS Information Technology (IT) Systems By Contractors (April 24)

In performance of this contract, the contractor agrees to comply with the following requirements and assume responsibility for compliance by its personnel and subcontractors (and their personnel):

1. IRS Information Technology Security Policy and Guidance. All current and new IRS contractor (including subcontractor) personnel authorized staff-like access to Treasury/IRS owned or controlled facilities and information systems, or work, wherever located, on those contracts, which involve the design, operation, repair or maintenance of information systems and staff-like access to Sensitive But Unclassified (SBU) information shall comply with the IRS Information Technology Security Policy and Guidance, Internal Revenue Manual (IRM) 10.8.1 Policy and Guidance, 10.8.2 IT Security Roles and Responsibilities, and IRS Publication 4812.

Copies of IRM 10.8.1 and 10.8.2 are available at <http://www.irs.gov/irm/>. This requirement applies to contractors who are using contractor/subcontractor-managed systems, including laptop computers, workstations, servers, and other IT resources at

contractor managed facilities. A copy of the most recent version of Publication 4812 is available at <https://www.irs.gov/pub/irs-pdf/p4812.pdf>.

2. Staff-Like Access Request and Authorization. Within ten (10) business days after contract award or issuance of an order, the contractor shall provide the Contracting Officer's Representative (COR) and Personnel Security, via email to hco.ps.contractor.security.onboarding@irs.gov list of names of all available contractor and subcontractor personnel and the IRS location(s) identified in the contract for which staff-like access is requested. Personnel Security will conduct an initial screening to determine eligibility and suitability for staff-like access in accordance with IRM 10.23.2, Contractor Investigations, and Department of the Treasury Security Manual (TD PM) 171, Chapter II, Section 2.

Contractor and subcontractor personnel are not permitted to begin work on the contract or order until approved for interim staff-like access (a minimum) as defined in IRM 10.23.2. This is consistent with IRS security practices and related IRMs, to include, but not limited to, IRM 1.4.6 – Managing Security Handbooks, IRM 10.2.14 – Methods of Providing Protection, and IRM 10.8.1 – Contingency and Guidance. Upon notification of a favorable suitability determination and interim staff-like approval, the COR will complete an Online 5081 (OL5081), Automated Information System Registration/Change Request, for each prime or subcontractor personnel and require an electronic signature from each such person stating the contractor personnel has read and fully understands the security requirements governing staff-like access to the Service's IT systems.

3. Remote Staff-Like Access. Authorizes staff-like access to IRS IT systems, information, or assets remotely; that is, from the contractor or other facility, office, or site, the requirements of this clause governs, as well as the general guidance and specific security controls standards in IRS Publication 4812, Contractor Security Controls. The contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information.

Contractor Acknowledgement. The contractor also acknowledges and agrees: (a) That personnel must comply with all laws, IRS system security rules and security policies, standards, and procedures, and (b) That any one of its personnel unsanctioned, negligent, or willful violation of the laws, system security rules, and security policies, standards, and procedures may result in the revocation of staff-like access to IRS information technology systems, immediate removal from IRS premises and the contract, and may be subject to arrest by Federal law enforcement agents.

5. Limited Personal Use of Government IT Resources.

a. Contractor (including subcontractor) personnel, like Federal employees, have no inherent right to use Government IT resources and this policy does not create the right to use Government IT resources for nongovernmental purposes. See IRM 10.8.27, Exhibit 10.8.27-1, Prohibited Uses of Government IT Resources, for specific examples of prohibited uses. See Title 5 - Code of Federal Regulations (CFR) - Part 73, Political Activities of Federal Employees, for specific examples of prohibited political activities.

b. Contractors and subcontractors are required to report a suspected or confirmed breach in any medium or form, electronically, verbally or in hardcopy form, immediately upon discovery. All incidents related to IRS processing, information or information systems shall be reported immediately upon discovery to the CO, COR, and CSIRC. Contact the CSIRC through any of the following methods:

Telephone: 240-613-3606

E-mail to csirc@irs.gov

- Information about unclassified other security incidents of a sensitive nature shall be transmitted using secure messaging or alternative form of encryption.
- If the incident involves the loss or theft of IRS IT asset, e.g., computer, laptop, router, printer, removable media (CD/DVD, flash drive, floppy, etc.), or non-IRS IT asset (BYOD device), or a loss or theft of hardcopy records/documents containing SBU data, including tax information, the contractor shall also report the incident/situation to the Treasury Inspector General for Tax Administration (TIGTA) hotline at 800-367-4484.

6. Replacement Personnel. Personnel who violate any conditions set forth in the clause are subject to removal from performance under the contract. The Government will provide notice to the Contractor of any contractor personnel no longer eligible for performance under the contract. The Contractor shall provide the name of the proposed replacement personnel to the CO and COR within five (5) business days from receipt of notice. The Contractor shall ensure replacement personnel have similar or equal credentials as the personnel being replaced.

7. Monitoring Notification. IRS management retains the right to monitor both the content and the level of access of contractor personnel use of IRS IT systems. Contractor personnel do not have a right, nor should they have an expectation, of privacy while using any information technology system at any time, including accessing the Internet or using e-mail.

8. Security Reports and Information. If any reports are required, the COR may direct the submission of such reports and information through a specific IRS application, to be determined, or the entry of specific information into the application or system.

9. Subcontracts. The Contractor shall incorporate this clause in all subcontracts, subcontract task or delivery orders or other subcontract performance instrument where the subcontractor personnel will require staff-like access, use or operation of IRS information technology systems.

10. Flow down of clauses: The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails access to SBU information by a subcontractor, at any tier, the same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

(End of Clause)

Information Systems and Information Security Controls for Contracting Actions Subject to Internal Revenue Manual (IRM) 10.8 Series (Apr 2024)

In performance of this contract, the contractor agrees to comply with the following requirements and assume responsibility for compliance by its personnel and subcontractors (and their personnel):

(a) General. The contractor shall ensure IRS information and information systems are protected at all times. The contractor shall develop, implement, and maintain effective controls and methodologies in its business processes, physical environments, and human capital or personnel practices that meet or otherwise adhere to the security controls, requirements, and objectives described in applicable security control guidelines, and the respective contracts.

(b) IRM 10.5 and 10.8 Series applicability. This contract action is subject to Internal Revenue Manual (IRM) Part 10.8– Information Technology (IT) Security, Policy and Guidance, and IRM 10.5 – Privacy and Information Protection series. The contractor shall adhere to the general guidance and specific security control standards or requirements contained in IRM 10.5 and IRM10.8 series. While the IRM 10.8 series shall apply to the

requirements to access systems, and IRM 10.5 series shall apply to access SBU data, IRS Publication 4812, Contractor Security & Privacy Controls, may also govern as addressed in another clause. It will address the requirements related to physical and personnel security that must continue to be maintained at contractor sites.

(c) Based on the Federal Information Security Modernization Act of 2014 (FISMA), and standards and guidelines developed by the National Institute of Standards and Technology (NIST), IRM 10.8 series provides overall IT security control guidance for the IRS, and uniform policies and guidance to be used by each office, or business operating, and functional unit within the IRS that uses IRS information systems to accomplish the IRS mission.

(d) Contractor Security Representative. The contractor shall assign and identify, in its offer, a Contractor Security Representative (CSR) and alternate CSR to all contracts requiring staff-like access to IRS information, information technology and systems, facilities, and/or assets. The CSR is the contractor's primary point for the Government on all security-related matters and the person responsible for ensuring the security of information and information systems in accordance with the terms and conditions of the contract and all applicable security controls. If requested by the Contracting Officer's Representative, the contractor will be required to identify a system, to be defined by the IRS, to describe the security controls being used to protect information.

(e) Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsource service agreements) that entail staff-like access to SBU information by subcontractor or agent, at any level, the substantially same Federal Acquisition Regulation (FAR) and/or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

(End of Clause)

Information Systems and Information Security Controls for Contracting Actions Subject to IRS Publication 4812 (Apr 2024)

Publication 4812 is an IRS specific guide to NIST SP 800-53 (version 4.0) when staff- like access to IRS information or information systems under contracts for services on behalf of the IRS is outside of IRS controlled facilities or the direct control of the Service (as

opposed to [Internal Revenue Manual 10.8.1 - Information Technology \(IT\) Security Policy and Guidance](#), which applies when contractors are accessing IRS information and information systems at Government controlled facilities).

The IRS Publication 4812 is a living document and updated annually to reflect changes from Executive Orders, OMB requirements, NIST updates, etc. The most current version (October 2019) of Publication 4812 is located on the [irs.gov](https://www.irs.gov/pub/irs-pdf/p4812.pdf) website.

In performance of this contract, the contractor agrees to comply with the following requirements and assumes responsibility for compliance by its personnel and subcontractors (and their personnel):

1. The contractor shall ensure IRS information and information systems (those of the IRS and/or the contractor, as appropriate) are protected at all times. In order to do so, the contractor shall develop, implement, and maintain effective controls and methodologies in its business processes, physical environments, and human capital or personnel practices that meet or otherwise adhere to the security control requirements, and objectives described in applicable security control guidelines, and their respective contracts.

(a) The contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information. Publication 4812 applicability. This contracting action is subject to Publication 4812 – Contractor Security & Privacy Controls. Publication 4812 is available at: <https://www.irs.gov/pub/irs-pdf/p4812.pdf>.

(b) The contractor will adhere to the general guidance and specific security control standards or requirements contained in Publication 4812. By inclusion of this clause in the contract, the most recent version of Publication 4812 is incorporated into the contract and has the same force and effect as if included in the main body of the immediate contract.

Flowing down from the Federal Information Security Modernization Act of 2014 (FISMA) and standards and guidelines developed by the National Institute of Standards and Technology (NIST), Publication 4812 identifies basic Technical, Operational, and Management (TOM) security controls and standards required of under contracts for services in which contractor (or subcontractor) personnel will either—

(a) Have staff-like access to, develop, operate, or maintain IRS information or information systems on behalf of the IRS (or provide related services) outside of IRS facilities or the direct control of the Service, and/or

(b) Have staff-like access to, compile, process, or store IRS SBU information on their own information systems/Information Technology (IT) assets or that of a subcontractor or third-party Service Provider, or when using their own information systems (or that of others) and on IT, or Electronic Information and Technology (EIT) (as defined in FAR Part 2) other than that owned or controlled by the IRS.

3. Unless the manual specifies otherwise, the IRS-specific requirements of Publication 4812 meet the standard from the latest version of the NIST Special Publication (SP) 800-53 (Version 4.0) – Federal Information Systems and Organizations. The security controls, requirements, and standards described within the Publication 4812 are to be used in lieu of the common, at-large security control standards enumerated in NIST SP 800-53 (Version 4.0).

Publication 4812 also describes the framework and general processes for conducting contractor security reviews – performed by IT Cybersecurity to monitor compliance and assess the effectiveness of security controls applicable to any given contracting action subject to Publication 4812.

4. Contractor Security Representative. The contractor shall assign and identify, upon award, a Contractor Security Representative (CSR) and attach the CSR to all contracts requiring staff-like access to Treasury/bureau information, information technology and systems, facilities, and/or personnel. The CSR is the contractor's primary point for the Government on all security-related matters and the person responsible for ensuring the security of information and information systems in accordance with the terms and conditions of the contract and any applicable security controls.

5. Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails staff-like access to SBU information, the subcontractor, at any tier, the same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS. If Publication 4812 also applies to subcontractors.

(End of Clause)

1052.242-70 Postaward Conference (Jan 2017)

(a) A postaward conference will be held with the successful offeror.

(b) The postaward conference will be held in person. The Contracting Officer or authorized designee will provide the Contractor with the date, time and location as well as agenda for the postaward conference.

(End of Clause)

Post Award Evaluation of Contractor Performance (Aug 2025)

Interim and final evaluations of contractor performance will be prepared on this contract in accordance with [FAR 42.15](#). The Assessing Official (AO) will prepare a final performance evaluation at the time the work on the contract is completed. In addition to the final evaluation, interim evaluations will be prepared annually to coincide with the anniversary date of the contract. [**** If evaluations are conducted annually, modify the above sentence appropriately.**]

The past performance evaluation process is a paperless process using the Contractor Performance Assessment Reporting System (CPARS). CPARS is a web-based system that allows for electronic processing of the performance evaluation report.

Once the Contractor is registered in CPARS, they will automatically receive an email from the CPARS site with details on login instructions. Further details, systems requirements, and training information for CPARS is available at the cpars.gov website and in the CPARS Manual. Contractor Training for Contractors, and a practice CPARS application are available on the cpars.gov site as well.

Interim and final evaluations are sent to the Contractor for their review and comment as soon as the evaluation is rated. If the Contractor elects not to provide comments, they should acknowledge receipt of the evaluation by indicating "No comment" and then sign and date the form. If the Contractor does not sign and submit the form within 60 days, it will automatically be returned to the Government.

If the contractor disagrees with the ratings, they may indicate that they do not concur with the ratings and provide feedback supporting their disagreement prior to signing the report. When the AO receives this disputed report, they cannot complete the CPARS until they forward the report to a Reviewing Official (RO). The RO reviews the CPARS and

determines if the ratings should be revised or not. If the RO decides no changes are necessary, the RO can sign and immediately complete the CPARS. However, if the RO determines that the ratings should be revised, they must send the report back to the AO through the CPARS system. Once the necessary changes are made to the Ratings, the AO sends the report back to RO for completion. The Reviewing Official must be a 'level-above' the AO, typically the AO's supervisor.

The following guidelines apply concerning the Contractor's use of the past performance evaluation:

- Protect the evaluation as "source selection information." After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason the Contractor is unable to view and/or submit the form through CPARS, contact the Contracting Officer for further instructions.
- Strictly control access to the evaluation within the Contractor's organization. Ensure the evaluation is never released to persons or entities outside of the Contractor's control.
- Prohibit the use of or reference to evaluation data for advertising, promotional material, pre- award surveys, responsibility determinations, production readiness reviews, or other similar purposes.
- A copy of the completed past performance evaluation will be available in CPARS for the Contractor's review and for Government use supporting source selection actions after it has been completed.

(End of Clause)

Treasury Acquisition Bulletin 25-01 Notice

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—

Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

(End of Language)

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SECTION III - PROVISIONS

Provisions Incorporated by Reference:

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)

52.217-5 Evaluation of Options (Oct 2025)

52.219-4 Notice of Price Evaluation preference for HUBZone Small Business Concerns (Oct 2025)

52.223-1 Biobased Product Certification (Oct 2025)

52.223-4 Recovered Material Certification (May 2006)

1052.219-73 Department of the Treasury Mentor-Protégé Program (Jun 2003)

Full Text Provisions:

52.203-2 Certificate of Independent Price Determination (Apr 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intent to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation), unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision: _____ *[insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];*

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of Provision)

2.204-5 Women-Owned Business (Other Than Small Business) (Oct 2014)

(a) *Definition.* "Women-owned business concern," as used in this provision, means a concern that is at least 51 percent owned by one or more women; or in the case of any publicly traded business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

(b) *Representation.* [Complete only if the offeror is a women-owned business concern and has not represented itself as a small business concern in paragraph (c)(1) of FAR 52.219-1, *Small Business Program Representations*, of this solicitation.] The offeror represents that it ☐ is a women-owned business concern.

(End of Provision)

52.209-2 Prohibition on Contracting with Inverted Domestic Corporations-Representation (Oct 2025)

(a) *Definitions.* As used in this clause—

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds to contract with an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies. The requirement is waived in accordance with the procedures at 9.108-5.

Representation. The Offeror represents that—

- (1) It ☐ is, ☐ is not an inverted domestic corporation; and
- (2) ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of Provision)

52.209-5 Certification Regarding Responsibility Matters (Oct 2025)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for or otherwise criminally or civilly charged by a governmental entity with the commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification is erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non-responsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of Provision)

2009-11 Representation by Corporations Regarding Delinquent Tax Liability or a Federal Conviction Under any Federal Law (Oct 2025)

(a) The Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for

collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of Provision)

52.216-1 Type of Contract (FAR 52.2035)

The Government contemplates award of a _____ [Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of Provision)

Notification - Organizational Conflicts Of Interest (May 2018)

a. The Government has determined there is a conflict or a potential for an organizational conflict of interest associated with the performance of work for this requirement. Accordingly, the attention of prospective offerors is invited to FAR Subpart 9.5, Organizational Conflicts of Interest.

b. The nature of this conflict is (COs shall describe the potential conflict of interest here in sufficient detail to allow a clear understanding by offerors/contractors).

c. The offeror warrants that, to the best of his/her knowledge and belief, there are no relevant facts or circumstances which could give rise to an Organizational Conflict of Interest (OCI), as defined in the Federal Acquisition Regulation (FAR) Section 9.5, or that he/she has disclosed all such relevant information. Offerors are advised that misrepresentation of the facts or failure to provide the information requested by the CO may cause the removal of their proposal from further consideration for award.

d. An offeror who believes that the performance of work under the contract may create an OCI shall provide in its proposal to the Government a plan to mitigate the OCI. This plan will be evaluated to determine whether or not the plan effectively mitigates the potential conflict of interest such that the full scope of work contemplated by this solicitation can be performed by the offeror. The Senior Government Executive will then evaluate the mitigation plan and, if the plan is satisfactory, may grant a waiver to the offeror in accordance with FAR 9.503.

e. Restrictions on the performance of work for this requirement and/or work on future contract requirements are set forth in the clause at FAR 53.201-1 entitled Organizational Conflicts of Interest. The terms of the Organizational Conflict of Interest clause included in this solicitation are not subject to negotiations.

(End of Provision)

Information Systems and Information Security Control Standards and Guidelines **Approved Apr 2021**

As part of its information security program, IRS identifies security controls for the organization's information and information systems in the following two key standards and guiding documents:

- Internal Revenue Manual (IRM) 10.8.1 - Information Technology (IT) Security, Policy and Guidance, and
- Publication 4812 - Contractor Security & Privacy Controls.

While IRM 10.8.1 and Publication 4812 are both based on the latest version of NIST SP 800-53, they apply to different operating environments-internal and external to the organization, respectively.

The contractor, by signing its offer, hereby asserts to the best of its knowledge and belief that the security control guideline(s) most suitable and applicable to the immediate contracting action, with due consideration to its proposed approach (and work environment) for fulfilling the Government's requirements and standards for applicability described herein, is as follows (check only one block):

☐IRM 10.8.1 ☐Publication 4812 ☐Both IRM 10.8.1 and Publication

Unless IRS Cybersecurity, (Contractor Security Assessment - CSA) determines through a notification to the Contractor by the CO, that a different (or second) security control standard or guideline is warranted, the security level selected/applied for by the contractor under IR1052.239-9010 shall stand. In the event IRS Cybersecurity (Contractor Security Assessment - CSA) determines a different (second) security control standard or guideline is warranted, the CO shall advise the contractor, in writing, of the Government determination, and reflect the correct/appropriate security control standard or guideline in the ensuing contract.

a. If Publication 4812 is selected (alone or in combination with IRM 10.8.1) as the most suitable security control guideline, the contractor shall identify, as part of its proposal submissions (or its submissions under a modification to an existing contract incorporating this clause), the most suitable security control level within the following hierarchy of security control levels (from lowest to highest):

- Software Application Development or Maintenance (SOFT)
- Networked Information Technology Infrastructure (NET)

(See Publication 4812 Appendix C for guidance in selecting the security control level most suitable and appropriate to the immediate contracting action. If additional guidance is needed in selecting the security control level, contact IRS Cybersecurity (Contractor Security Assessment - CSA).)

b. The contractor, by signing its offer, hereby asserts to the best of its knowledge and belief that the security control level under Publication 4812 most suitable and applicable to the immediate contracting action, with due consideration to its proposed approach (and work environment) and standards for applicability described herein, is as follows (check only one):

☐SOFT ☐NET

c. Unless IRS Cybersecurity (Contractor Security Assessment - CSA) determines that a different (higher or lower) security control level is warranted for contracts subject to the

most recent version of Publication 4812, the security level selected/applied for by the contractor will govern throughout the life of the contract. In the event the IRS Cybersecurity (Contractor Security Assessment - CSA) determines a different (higher or lower) security level is warranted, the CO will advise the contractor, in writing, of the Government determination. At the end of the contract, for all security levels, the contractor must provide a plan and document the implementation of the plan to ensure that all hard copy and electronic data is returned to the IRS, sanitized, and destroyed.

d. Failure by the contractor to check any block will result in the use of both guidelines (for the Publication 4812 portion, use of the most stringent security control level (Software)) until and unless IRS Cybersecurity (Contractor Security Assessment - CSA) determines otherwise via notification to the Contractor by the CO.

e. If required by the Contracting Officer's Representative (COR), the contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information.

f. Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails SBU-like access to SBU information by a subcontractor, at any time the subcontractor is under the Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

(End of Provision)

SECTION IV- INSTRUCTIONS TO OFFERORS:

This solicitation is issued in accordance with Federal Acquisition Regulation (FAR) Part 15, Contracting by Negotiation. The Government intends to award a single contract as described in Sections I and II of this solicitation. The Offeror shall prepare and submit its quote for this solicitation in accordance with the instructions specified in this Section. Quotes not conforming to the instructions may be eliminated from consideration for award. The Vendor may be given an opportunity to remedy minor irregularities in its quote submission to conform to these instructions.

The Vendor must complete blocks 17a, 30a, 30b and 30c of the SF1449, page 1. These blocks contain the name and address of the Contractor, signature of the person authorized to sign the quote, and date of quote. Contractor agrees to hold the prices in its quote firm for 60 calendar days from the date specified for the receipt of quote unless another time period is specified in an amendment to the solicitation.

Quote submissions, excluding the fully functional software, shall be submitted via email to patricia.e.brown@irs.gov and ladoris.r.tuck@irs.gov prior to the solicitation closing date and time. The size limit for all attachments to the email is approximately 25MB. The e-mail subject line shall contain the text: "RFP 2016-FY-2017 Submission".

If the Vendor cannot provide a fully functional copy of the software via the Internet then the fully functional software must be provided on a USB flash drive. USB flash drives submitted in response to this solicitation become property of the federal Government and will not be returned to the Vendor. Delivery of the USB flash drive shall be made to the address below via the United States Postal Service, United Parcel Service or FEDEX. No vendor hand-carried quotes will be accepted.

The quoter is solely responsible for ensuring that their emails, attachments and electronic media submitted is virus free and can be opened and read by the Government. As the closing date is close, there is heavy traffic on the web server may cause delays. Offerors are strongly encouraged to plan ahead and leave ample time to prepare and submit their quote. Quoters are solely responsible for ensuring the government receives their quote prior to the closing date/time specified on the SF1449.

Questions must be in writing and submitted via email, entitled "Solicitation Questions". Written questions must be received by at the email addresses stated in this paragraph, not later than the date/time specified in this paragraph. Questions regarding this solicitation shall be emailed to

patricia.e.brown@irs.gov and ladoris.r.tuck@irs.gov. The e-mail subject line must contain the text: "Questions to RFP 2043FY-26-R-00007. The Government solely reserves the right to not answer any questions submitted.

Each quote shall contain a 1) Technical Section, 2) fully functional copy of the software for COE testing, 3) Pricing Section, 4) Past Performance Section and 4) Other necessary documents.

Instructions for Non-price Information

The contractor's non-price quote shall include the following: name, address, and telephone number of the contractor, a technical description (Brand name and part #) of the item being offered in sufficient detail to evaluate compliance with the requirements, terms of any expressed warranty, any discount terms and DUNS number.

Technical Approach/Capability Section

The documentation submitted by the Offeror to address the technical evaluation factor shall outline the contractors overall approach to accomplishing the requirements of this solicitation. The plans submitted for this factor will be incorporated into the contract and shall be binding upon the final executed contract. The technical proposal shall demonstrate the Offeror's ability to successfully execute their approach to the acquisition as cited in the Statement of Work (SOW). The proposal outlines an effective, efficient, achievable approach for accomplishing the work to be performed by this task order within the timeline specified by either performance periods or documented in the delivery schedule.

TECHNICAL/FUNCTIONAL CAPABILITIES VERIFICATION and must include a completed copy within the Technical quote. The contractor shall identify the specific section and page number in the SOW which describes fulfillment of each of the requirements. Additionally, the contractor shall describe how they get to the end state of the software as applicable (e.g. click tab X). The technical quote will be used to evaluate the Contractor's Technical Capability factor described under Evaluation Method.

Pricing information shall be in the Technical Section. The Technical Section is limited to 25 pages (letter size, 8 1/2" x 11"). Any exceptions to terms and conditions of this solicitation shall be identified within the Technical Section. However, exception(s) to material terms and conditions may result in a rating of unacceptable and ineligibility for award.

The document electronic format shall be Adobe Portable Document Format (PDF) or be accessible in Microsoft Office 2010 (i.e., Word 2010).

Software

Offerors shall provide a fully functional copy of the software to support the independent identification of required features and functionality including the location of features.

Offerors shall provide the software to allow the Government to identify that the functionality required, IRS COE, and VITA COE requirements are in accordance with software, operational, regulatory and security requirements, described in this solicitation. Note that the reporting capabilities need not be functional at the time of quote submission.

Instructions for Price Information

The Offeror shall submit prices for all contract line items (this includes a detailed price/cost breakdown for each line item) to be considered responsive and eligible for contract award. Price evaluation will be undertaken concurrently with the technical evaluation by the Contracting Officer. Although the proposed prices will not be scored, they will be evaluated for each mandatory contract line item described in Section B.

These prices will be evaluated using the following criteria:

1. Price analysis will be conducted in accordance with the applicable techniques cited in FAR 15.804-6.
2. The total anticipated annual prices for the Base Period and each Option Period will be added together for total proposed price.

Past Performance

Evaluation of past performance may be based upon past performance information contained in the Contractor Performance Assessment Reporting System (CPARS), and upon the completed questionnaires obtained from the technical competency and alternate references identified by the Offerors. CPARS has been established as a Government-wide performance system and serves as a central warehouse for performance assessment reports received from various Federal performance information collections systems. Based upon information contained in CPARS and in the technical competency and alternate references, the Government will evaluate relevant corporate past performance managing contracts similar in size, scope and complexity to that contemplated by the solicitation. Past performance is relevant when an Offeror has been confronted with the kinds of challenges and risks

contemplated by the solicitation. In order for the past performance to be considered recent, it must be performed within the past three (3) years.

The Government can consider information about Offerors past performance information from any source and is not restricted to information obtained from the past performance questionnaires, references, or the past performance database.

The offeror shall provide one technical-competency reference and one external reference for each **Corporate Experience project profile** submitted. **(Total – Six Past Performance References)**. The references for all **three** projects must have been associated with the project during the last three years. The Offeror shall ensure that the contact information for each reference is current and accurate. The Government will attempt to contact the references for each project profile to complete the past performance questionnaire relative to past performance.

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SECTION V EVALUATION CRITERIA AND BASIS FOR AWARD

FACTOR 1 – TECHNICAL CAPABILITY: Responses will be evaluated against the Technical factors defined below. The documentation submitted by the Offeror to address this technical evaluation factor shall outline the contractors overall approach to accomplishing the requirements of this solicitation. The plans submitted for this factor will be incorporated into the contract and shall be binding upon the final executed contract. The technical proposal shall demonstrate the Offeror's ability to successfully execute their approach to this acquisition as cited in the Statement of Work (SOW) including the transfer of knowledge ramp up in and out. The proposal outlines an effective, efficient, achievable approach for accomplishing the work to be performed by this task order within the timeline specified by either performance periods or documented in a deliverable schedule.

FACTOR 2: Relevant Work Experience: Offerors must demonstrate their experience with working on projects of similar size, scope, and complexity as outlined in the SOW. Corporate Experience shall be evaluated through the submission of three (3) project profiles consisting of at least two (2) projects as alternate contractor. The third may be that of a proposed sub-contractor.

One of the two references (primary and alternate) identified for each profile should have the ability to rate the contractor's skill level in regard to the preceding technical criteria.

FACTOR 3: Software Capability: Copies or links of the software must be submitted for testing. Team will be testing online desktop and Facilitated Self-Assisted software. The Team will conduct testing during this phase of the evaluation. If information is obtained through testing of contractor information provided in the technical proposal, the testing results shall be given precedence. Offerors must receive a rating of "good" under all mandatory technical requirements of the SOW to be eligible for award.

FACTOR 4: Past Performance:

Evaluation of past performance may be based upon past performance information contained in the Contractor Performance Assessment Reporting System (CPARS), and upon the completed questionnaires obtained from the technical competency and alternate references identified by the Offerors. CPARS has been established as a government-wide performance system and serves as a central warehouse for

performance assessment reports received from various Federal performance information collections systems. Based upon information contained in PPIRS and in the technical competency and alternate references, the Government will evaluate Offerors' relevant corporate past performance managing contracts similar in size, scope and complexity to that contemplated by the solicitation. Past performance is relevant when an Offeror has been confronted with the kinds of challenges and risks contemplated by the solicitation. In order for the past performance to be considered recent, it must be performed within the past three (3) years.

The Government can consider information about Offerors past performance information from any source and is not restricted to information obtained from the past performance questionnaires, references, or the past performance database.

The offeror shall provide one technical-competency reference and one alternate reference for each **Corporate Experience project profile** submitted. **(Total – Three Past Performance References)**. The references for all projects must have been associated with the project during the last three years. The Offeror shall ensure that the contact information for each reference is current and accurate. The Government will attempt to contact the reference for each project profile to complete the past performance questionnaire relative to past performance.

Rating	Description
Excellent	Highly relevant past performance; consistently exceeds requirements; no significant issues; very low risk.
Good	Relevant or highly relevant; meets all requirements and exceeds some; minor issues resolved timely; low risk.
Satisfactory	Relevant; meets requirements; some issues raise concerns; moderate risk.
Unsatisfactory	Relevant experience but poor performance; unresolved issues or vulnerabilities; high risk; unawardable.
Neutral	No relevant past performance; not rated favorably or unfavorably.

FACTOR 5: Subcontracting Plan:

The Government will evaluate the Small Business Participation Plan on its quality, level of appropriate detail, feasibility, cost effectiveness and the Contractor's good faith effort to help IRS achieve its Small Business Subcontracting goals listed below:
Small Business Participation is evaluated as a goal only, consistent with RFP.

Small Business (SB) 40%
Small Disadvantaged Business (SDB) 12% Woman-Owned Small Business (WOSB) 5% HUBZone Business (HUBZone) 3%
Service-Disabled Veteran Owned Business (SDVOC) 3%

FACTOR 6: PRICE : The awards will be made on the basis of best value to the Government. Best value meaning an acquisition process that results in the most advantageous acquisition decision for the Government performed through an integrated assessment and trade-off between technical factors and price. Technical factors include all factors other than the price. The Offeror must submit prices for all contract line items (this includes a detailed price/cost breakdown for each line item) to be considered responsive/eligible for contract award. Price evaluation will be undertaken concurrently with the technical evaluation by the Contracting Officer. Although the proposed prices will not be scored, they will be evaluated for each mandatory contract line item described in Section 1. These prices will be evaluated using the following criteria:

1. Price analysis will be conducted in accordance with the applicable techniques cited in FAR 15.306.
2. The total estimated annual prices for the Base Period and each Option Period will be added together for a total proposed price.

The price schedule shall include a quoted price for each contract line-item number (CLIN), extended prices to include discounts terms (if applicable), and total Firm-Fixed price to be eligible for consideration of award. Prices will be evaluated separately. Questions must be priced and submitted for the base and each option year ordering period. The quote must accurately cover all items listed in the schedule (Attachment 1). Offerors whose price is determined to be unreasonable or unbalanced may not be considered for award.

All pricing will remain valid from the date of submission for 90 days. The Government may assess the realism of proposed prices where an offeror's total evaluated price can

realistically support the requirement herein. An offer must be made on all items in the schedule.

Basis of Award: Award will be made to the vendor whose proposal represents the best value to the Government. Best-value source selection procedures shall be applied. This RFQ shall be awarded to the offeror deemed responsible, responsive, demonstrates both technical capabilities, and represents the best value to the Government, based on selection of the technically acceptable proposal with the best-in-value estimated price.

The Government shall make a determination of technical acceptability based on written technical approach/SOW demonstrating understanding of requirements, source's ability to operate in the IRS Common Operating Environment (COE), and all specifications provided in this solicitation to include attachments. Technical acceptability shall be evaluated on an "acceptable" or "unacceptable" basis. Any factor or sub-factor evaluated as "unacceptable" will render the entire proposal unacceptable and, therefore, will not be considered for award. Only proposals determined to be technically acceptable, either initially or as a result of demonstrations/exchanges, will be considered for award. However, the offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as required, without discussion.

By submission of its offer, the Offeror accepts all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements. All technically acceptable offers, regardless of satisfactory past performance, shall be treated equally except for their prices. Failure to meet a requirement may result in an offer being determined technically unacceptable. Offerors must clearly identify any exception to the solicitation and conditions and provide complete accompanying rationale. The Government intends to select ONE contractor for award of this effort.